



Patrick Hazelwood <hazelwoodassociatesllc@gmail.com>

A-2025-85 **RUSH**

2 messages

Sara Kestner <sara@evergreentitleandclosing.com>

Tue, Oct 28, 2025 at 3:03 PM

To: "Hazelwoodassociatesllc@gmail.com" <Hazelwoodassociatesllc@gmail.com>, Sunni Balta <Sunni@evergreentitleandclosing.com>

Date Requested: October 28, 2025
Contact: Patrick Hazelwood
Requested By: Sara Kestner
Contact: Evergreen Title and Closing, LLC
Address: [110 Abingdon Place, Abingdon, VA 24211](#)
File Number: A-2025-85
Borrower: Michael Lewis
Seller: Jonathan Little
Lender: Farm Credit of the Virginias, ACA
Property Location: TBD Lions Club Road, Saltville, VA 24370
County: Smyth
Tax/Map Number/ID: Property 1:
41-A-55i
Anticipate Closing Date: 11/21/2025
Additional Information:

I know the closing date says 11/21/25 but the lender is wanting to move this way up. Can you do a full title search on the purchase property as soon as you can. Thank you.

Thank you,

Sara Kestner, Escrow Officer
Evergreen Title and Closing, LLC
[1104 Volunteer Parkway, Suite 110](#)
[Bristol, Tennessee 37620](#)
Phone: (423) 573-9750
Fax: (423) 573-9751
Sara@evergreentitleandclosing.com
www.evergreentitleandclosing.com

WARNING – FRAUDULENT FUNDING INSTRUCTIONS

Email hacking and fraud are on the rise to fraudulently misdirect funds. Please call your escrow officer immediately using contact information found from an independent source, such as the sales contract or internet, to verify any funding instructions received. We are not responsible for any wires sent by you to an incorrect bank account.

Confidentiality Notice: This electronic mail transmission may contain confidential information which is legally privileged. The information contained herein is intended only for the use of the individual or entity named above. If you are not the intended recipient, you are hereby notified that any review, dissemination, distribution, archival or copying of this communication is strictly prohibited. If you receive this communication in error, please reply to this message immediately and delete the original message and the associated reply. Thank You!

Sent from  Qualia

Patrick Hazelwood <hazelwoodassociatesllc@gmail.com>

Tue, Oct 28, 2025 at 3:04 PM

To: Sara Kestner <sara@evergreentitleandclosing.com>

Cc: Sunni Balta <Sunni@evergreentitleandclosing.com>

Yes, I can do this.

[Quoted text hidden]



0 LYONS CLUB RD

Location 0 LYONS CLUB RD

Mblu 41/ A/ 55/ I/

Acct# 988816

Owner LITTLE JONATHAN C

Assessed Value \$11,600

PBN SINGLE FAMILY SUBURB

PID 988816

Building Count 1

Legal Description OLD QUARRY TERRY TR 41 A
55I

District 01: SALTVILLE

Current Value

Assessment					
Valuation Year	Improvements	Land	Total	Land Use Program Land Value	Total Assessment Under Land Use Program
2026	\$1,500	\$54,500	\$56,000	\$10,100	\$11,600

Owner of Record

Owner LITTLE JONATHAN C

Co-Owner

Address 108 ARNOLD HILL LANE
SALTVILLE, VA 24370

Sale Price \$0

Instrument Year 2017

Book & Page 1005/340

Sale Date 03/10/2017

Validity Code 00

Ownership History

Ownership History						
Owner	Sale Price	Instrument Year	Book & Page	Validity Code	Sale Date	Instrument Number
LITTLE JONATHAN C	\$0	2017	1005/340	00	03/10/2017	
LITTLE JONATHAN C	\$0	2017	1005/340	00	03/10/2017	
LITTLE JONATHAN C	\$0	2017	1003/84	00	01/17/2017	

Building Information

Building 1 : Section 1

Year Built:

Living Area: 0

Building Percent Good:

Building Attributes	
Field	Description
Style	Vacant Land
Model	
Grade	
Stories	
Foundation	

Building Photo

 Building Photo

(<https://images.vgsi.com/photos/smythcountyvaPhotos/default.jpg>)

Building Layout

([ParcelSketch.ashx?pid=988816&bid=988816](#))

Building Sub-Areas (sq ft)	Legend
No Data for Building Sub-Areas	

Exterior Wall 1	
Exterior Wall 2	
Roof Type	
Roof Cover	
Interior Wall 1	
Interior Wall 2	
Num Cars - Carport	
Garage Type	
Carport Type	
Heat System	
AC Type	
Bedroom(s)	
Full Bath(s)	
Half Bath(s)	
Extra Fixture(s)	
Total Room(s)	
SEW/WTR/LND	
Extra Kitchen(s)	
Interior Floor 3	
FBM Quality	
Interior Floor 1	
Interior Floor 2	
Garage Type 2	
Heat Fuel	
Num Cars - Garage	
Fireplace(s)	
Grade Adjust	
Legacy Area	
Num Cars - Built In	
Num Units	
Stacked Fireplace(s)	
Flue(s)	
Gas Fireplace(s)	
Inop Flue/FPL	
Interior Wall 3	
Basement	
Fin Bsmt Area	
Num Cars - Garage 2	
Split Foyer	
Split Level	
Metal Flue(s)	
Basement Area	

Extra Features

Extra Features

Legend

No Data for Extra Features

Land

Land Use

Use Code 200V
Description SINGLE FAMILY SUBURB - VAC
Zone
Neighborhood
Alt Land Appr Yes
Category

Land Line Valuation

Size (Acres) 15.57
Frontage 0
Depth 0
Land \$54,500
Land Use Value \$10,100
Land Use Acres 15.57

Outbuildings

Outbuildings						<u>Legend</u>
Code	Description	Sub Code	Sub Description	Size	Assessed Value	Bldg #
BARN	BARN	MT	METAL	1.00 UN	\$1,500	1

Valuation History

Assessment					
Valuation Year	Improvements	Land	Total	Land Use Program Land Value	Total Assessment Under Land Use Program
2025	\$1,500	\$54,500	\$56,000	\$10,100	\$11,600
2024	\$1,500	\$54,500	\$56,000	\$10,100	\$11,600
2023	\$1,500	\$54,500	\$56,000	\$10,899	\$12,399
2022	\$1,500	\$54,500	\$56,000	\$10,899	\$12,399
2021	\$1,500	\$54,500	\$56,000	\$10,899	\$12,399
2020	\$1,500	\$54,500	\$56,000	\$10,899	\$12,399

Type: PAY Dept/Bill#: RE2025 00115700001 P/I Date: 10/28/2025 10/28/2025
Name: LITTLE JONATHAN C Bill Date: 8/04/2025 Half: 1
Nam2: Due/PstDt: 12/05/2025
Addr: 108 ARNOLD HILL LANE PAdr: LYONS CLUB RD

SALTVILLE VA

Zip: 24370 - 0000 Map#: 000988816
Desc: OLD QUARRY MMBBDDXXXXXXXX
TERRY TR Acre: 15.57 Dist/Cls 01 / 00 Status
MrtgCo:
41 A 55I SSN: 000 - 00 - 0000 000 - 00 - 0000

- Land: \$54,500 Improve: \$1,500 Use: \$10,121
Original Bill: \$68.56 Credits: \$68.56 Discount: \$.00
Penalty Paid: \$.00 Int Paid: \$.00 Last Date: 10/28/2025
Amount Owed: \$.00 Other: \$.00 Setoff Claim#: 000000000
Total Owed: \$.00 Penalty: \$.00 Interest: \$.00
Principal Due: Pen Rate % Int Fact
Penalty Due: Interest Due:
Total Amount Due: Aging:

BOOK 1005 PAGE 0340

PREPARED BY: BRANDON R. BOYLES, ESQ. - V.S.B. Number 72755
RETURNED TO: Blue Ridge Title & Settlement Agency, LLC
TAX MAP NOS.: 41-A-55B, 41-A-55H & 41-A-55I

RECEIVED
CIRCUIT COURT CLERK
SMYTH COUNTY VIRGINIA

2017 MAR 10 PM 3:59

THIS DEED OF VACATION, entered into this 23rd day of February, 2017, by and between JONATHAN C. LITTLE, party of the first part, and JONATHAN C. LITTLE, party of the second part, whose mailing address is P.O. Box 36, Saltville, Virginia 24370 and THE COUNTY OF SMYTH, VIRGINIA, Party of the Third Part;

-WITNESSETH-

1. There is a certain survey and plat partially entitled, "LOT LINE ADJUSTMENT AND RIGHT OF WAY RELOCATION SURVEY TMP 41-A-55H 1.537 ACRES TOTAL BEING THE LANDS OF JONATHAN CHAD LITTLE AND ELIZABETH ANN SLATE LITTLE. . .," by Gregory G. McGlothlin, Land surveyor with Linzee-Mac Surveyors LLC, dated September 9, 2014 and attached herein for recording in the Clerk's Office of the Circuit Court of Smyth County, Virginia, prior to this deed of vacation.
2. That Jonathan C. Little is the owner of that tract containing 0.50 acre, more or less as shown on a plat appearing of record in the aforesaid Clerk's Office on Plat Slide 309, Page 13 conveyed to him as Parcel Number Two, Tract No. 2 by deed from Jonathan Chad Little and Elizabeth Ann Slate Little, dated December 30, 2016 and of record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 1003, Page 84. Reference is further made to that Deed to Jonathan Chad Little and Elizabeth Ann Slate Little, dated October 21, 2013 and of record in the aforesaid Clerk's Office in Deed Book 856 Page 263. The tract containing 0.50 acre is shown on the survey referenced above by Gregory G. McGlothlin as a dotted square with the words "Lot

Lines to Be Vacated (Relocated)."

Brandon R. Boyles, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

3. That Jonathan C. Little is the owner of the tract containing 1.537 acre, more or less as shown on the above-referenced plat conveyed to him as a portion of Parcel Number Two, Tract Number One by deed from Jonathan Chad Little and Elizabeth Ann Slate Little, dated December 30, 2016 and of record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 1003, Page 84. Reference is further made to that Deed to Jonathan Chad Little and Elizabeth Ann Slate Little, dated October 21, 2013 and of record in the aforesaid Clerk's Office in Deed Book 856 Page 263.
4. That Jonathan C. Little does desire to vacate all interior lot lines as shown on plat attached so that this 0.50 acre parcel will become a part of Tax Map Number 41-A-55I.
5. That the 1.537 acres tract as shown on plat is a portion of Tax Map Number 41-A-55B and will continue to be Tax Map Number 41-A-55B.
6. That the remaining portion of Tax Map Number 41-A-55B will be combined with that 0.50 acre tract and will become Tax Map Number 41-A-55I, and approved by the Commissioner of Revenue of Smyth County, Virginia.
7. That Jonathan C. Little does hereby desire to relocate the existing 20' Right-of-Way as shown on Plat Slide 309, Page 13 and as shown on the plat referenced above attached herein for recording in the Clerk's Office of the Circuit Court of Smyth County, Virginia, prior to this deed of vacation.
8. That Virginia Code Section 15.2-2275 of the Code of Virginia, 1950 as amended, allows such lot vacation by deed.

NOW, THEREFORE, in consideration of the mutual covenants and benefits accruing unto Jonathan C. Little, the aforesaid party on behalf of himself, his assigns and successors in interest, do hereby vacate the interior lot line between the aforesaid tracts as set forth above.

WITNESS THE FOLLOWING SIGNATURES AND SEALS:

Brandon R. Boyles, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

Jonathan C. Little (SEAL)
JONATHAN C. LITTLE

COMMONWEALTH OF VIRGINIA
County of Smyth, to wit;

The foregoing instrument was acknowledged before me, a Notary Public, by Jonathan

C. Little, on this 10th day of March, 2017.

Louis S. Hash
Notary Public

My commission expires 12-31-2018.

Notary Registration No. 4066426.



LOUIS S. HASH
NOTARY PUBLIC
COMMONWEALTH OF VIRGINIA
COMMISSION NO. 4086426

Approval. This instrument is executed by Clegg Williams, Zoning Administrator, on behalf of and under the authority of the Board of Supervisors of Smyth County, Virginia and the Planning Commission of Smyth County, Virginia. Approval of this Deed of Vacation is pursuant to Section 15.2-2275 of the Code of Virginia, 1950 as amended, and Section 3.5 of the Smyth County Subdivision Ordinance.

Clegg Williams (SEAL)
CLEGG WILLIAMS.
Zoning Administrator, Smyth County, Virginia

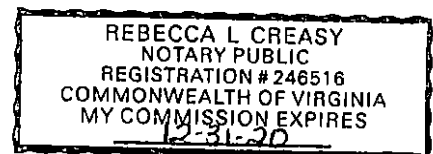
COMMONWEALTH OF VIRGINIA
County of Smyth, to wit;

The foregoing instrument was acknowledged before me, a Notary Public, by Clegg Williams, Zoning Administrator of Smyth County, Virginia on this 23rd day of February, 2017.

Rebecca L. Creasy
Notary Public

My commission expires 12-31-20.

Notary Registration No. 246516.



Brandon R. Boyles, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

[Signature] (SEAL)

By:
Campbell Law Firm, P.C.
County Attorney, Smyth County, Virginia

COMMONWEALTH OF VIRGINIA

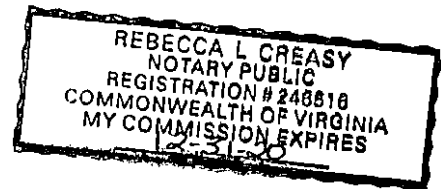
County of Smyth, to wit;

The foregoing instrument was acknowledged before me, a Notary Public, this 23rd day of February, 2017 by Travis Lee, Attorney with Campbell Law Firm, P.C., County Attorney for Smyth County, Virginia, approving the deed as to form.

Rebecca L Creasy
Notary Public

My commission expires 12-31-20.

Notary Registration No. 246516.



INSTRUMENT #170000638
RECORDED IN THE CLERK'S OFFICE OF
SMYTH ON
MARCH 10, 2017 AT 04:05PM

JOHN H. GRAHAM, CLERK
RECORDED BY: AAM

Brandon R. Boyles, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

Inst # 17-639

PLAT

Recorded 3/10/2017

Slide 393 Page 2

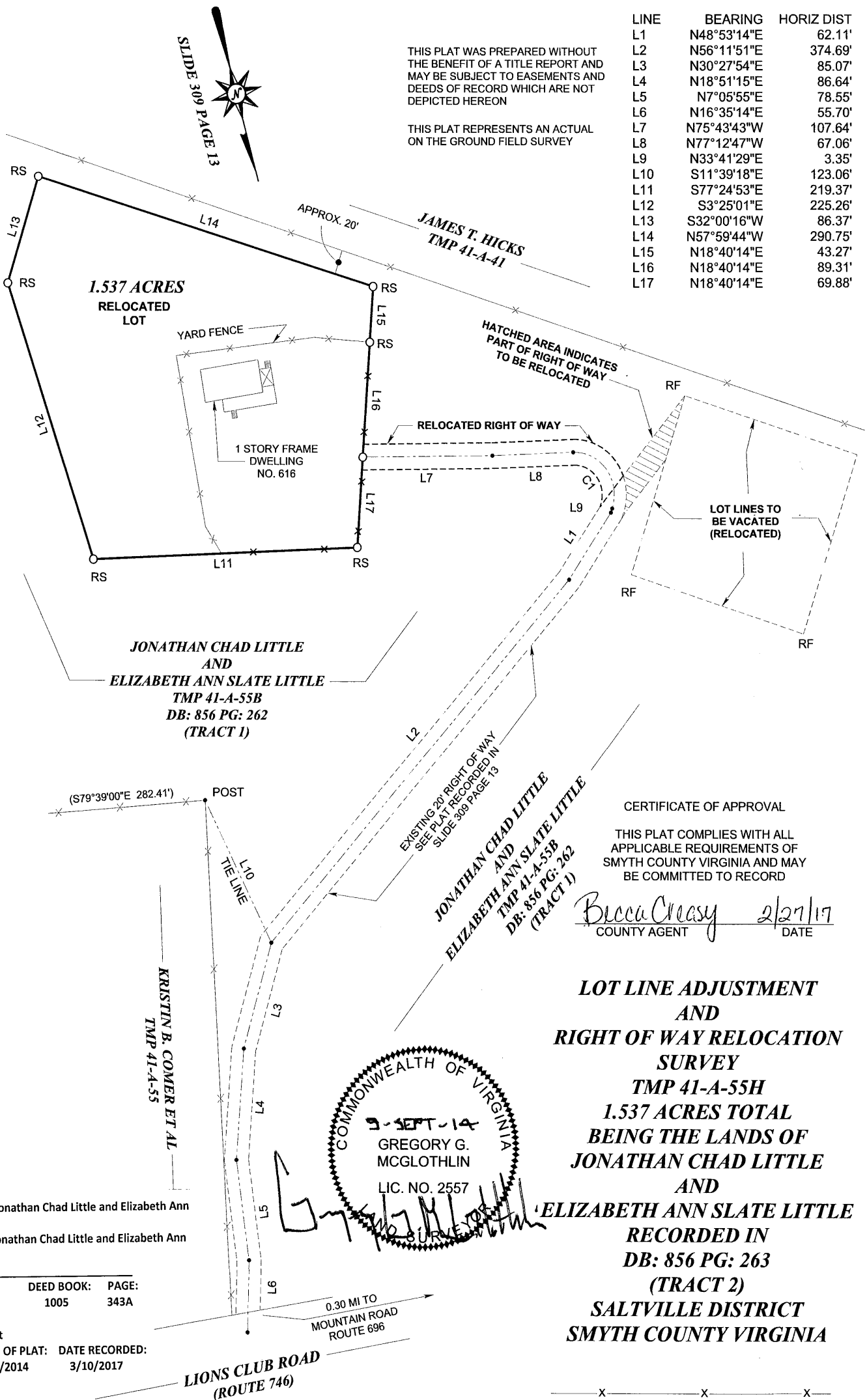
TR Saltville Dist

**GRANTOR: Jonathan Chad Little
and Elizabeth Ann Slate Little**

**GRANTEE: Jonathan Chad Little and
Elizabeth Ann Slate Little**

CURVE	BEARING	HORIZ DIST	RADIUS	ARC	DELTA	TANGENT
C1	N21°45'39"W	54.17'	32.89'	63.66'	110°54'16"	47.76'

LINE	BEARING	HORIZ DIST
L1	N48°53'14"E	62.11'
L2	N56°11'51"E	374.69'
L3	N30°27'54"E	85.07'
L4	N18°51'15"E	86.64'
L5	N7°05'55"E	78.55'
L6	N16°35'14"E	55.70'
L7	N75°43'43"W	107.64'
L8	N77°12'47"W	67.06'
L9	N33°41'29"E	3.35'
L10	S11°39'18"E	123.06'
L11	S77°24'53"E	219.37'
L12	S3°25'01"E	225.26'
L13	S32°00'16"W	86.37'
L14	N57°59'44"W	290.75'
L15	N18°40'14"E	43.27'
L16	N18°40'14"E	89.31'
L17	N18°40'14"E	69.88'



CERTIFICATE OF APPROVAL

THIS PLAT COMPLIES WITH ALL APPLICABLE REQUIREMENTS OF SMYTH COUNTY VIRGINIA AND MAY BE COMMITTED TO RECORD

Becca Cneasy 2/27/17
COUNTY AGENT DATE

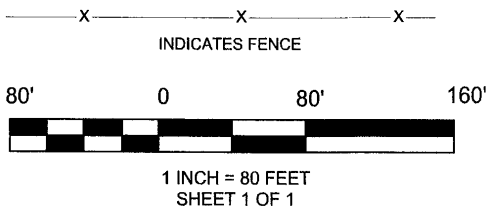
**LOT LINE ADJUSTMENT
AND
RIGHT OF WAY RELOCATION
SURVEY
TMP 41-A-55H
1.537 ACRES TOTAL
BEING THE LANDS OF
JONATHAN CHAD LITTLE
AND
ELIZABETH ANN SLATE LITTLE
RECORDED IN
DB: 856 PG: 263
(TRACT 2)
SALTVILLE DISTRICT
SMYTH COUNTY VIRGINIA**

GRANTOR(S): Jonathan Chad Little and Elizabeth Ann Slate Little
GRANTEE(S): Jonathan Chad Little and Elizabeth Ann Slate Little

DESCRIPTION: DEED BOOK: PAGE:
Slide Page 1005 343A
393 2
TR: Saltville Dist
KIND: DATE OF PLAT: DATE RECORDED:
DOC-PL 9/5/2014 3/10/2017

LINZEE-MAC SURVEYORS LLC
ESTABLISHING VIRGINIA LANDMARKS
201 EAST MAIN STREET MARION VIRGINIA 24354
PH: 1-276-780-1491
JOB ID: 14.062 AUGUST 22, 2014

RS = REBAR SET
RF = REBAR FOUND



PREPARED BY: BRANDON R. BOYLES, ESQ. – VSB Number 72755
RETURNED TO: Blue Ridge Title & Settlement Agency, LLC
TAX MAP NO.: 41-A-54, 41-A-55B & 41-A-55H
TAX ASSESSMENT: N/A

CLERK OF COURT
SMYTH COUNTY, VIRGINIA

2017 JAN 17 AM 11:03

THIS DEED OF GIFT, Made this 30th day of December, 2016, by and between JONATHAN CHAD LITTLE and ELIZABETH ANN SLATE LITTLE, Grantors, and JONATHAN C. LITTLE, whose address is P. O. Box 36, Saltville, Virginia 24370, Grantees.

-WITNESSETH-

That for and in consideration of a gift, the said Grantors do hereby grant and convey unto the said Grantee, in fee simple, with General Warranty and Modern English Covenants of Title, the following described property, to wit;

Parcel Number One: Tax Map Number 41-A-54

That certain tract or parcel of land lying and being in the Saltville Magisterial District, Smyth County, Virginia, at 108 Arnold Hill Lane, Saltville, VA 24370, and described as follows:

Designated as Tract No.2 containing 6.00 acres as shown on plat entitled, "PLAT SHOWING A DIVISION OF THE PROPERTY OF POLLY PROFFITT ARNOLD ... " by James R. Jones, CLS, dated April 16, 1994, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 290, Page 16, and reference is hereby made to said plat for a more particular description of the premises.

As shown on plat of record on Plat Slide 290, Page 16, this property is

The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

made subject to a right-of-way referenced in Deed Book 457, Page 150.

Being the same property conveyed to Jonathan Chad Little and Elizabeth Ann Slate Little, husband and wife as tenants by the entirety with the right of survivorship as at common law, from Jonathan Chad Little and Sharon Lynn A. Little, by Deed dated March 18, 2010, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 800, Page 849.

Parcel Number Two: Tax Map Numbers 41-A-55B and 41-A-55H

Those certain tracts or parcels of land lying and being on Virginia Secondary Highway No. 746 to the Old Rich Valley Quarry, in the Saltville District, Smyth County, Virginia, and described as follows:

TRACT NO. 1:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of **BEGINNING**.

LESS AND EXCEPT 0.50 acres conveyed to William A. DeBord, Jr. by deed dated February 08, 2001 and recorded in Deed Book 561, Page 116.

TRACT NO. 2:

The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, CLS, dated February 7, 2001, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 309, Page 13 and reference is here made to said plat for a more particular description of the premises.

Being the same property conveyed to Jonathan Chad Little and Elizabeth Ann Slate Little, husband and wife as tenants by the entirety with the right of survivorship as at common law, by Deed from Stephen S. Gransden, dated October 21, 2013, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 856, Page 263.

Reference to said survey and deed is here made for a more definite description of the property herein conveyed and for chain of title.

This property is SUBJECT to such rights-of-way or easements for access by others or utilities which are of record in the aforesaid Clerk's Office or are apparent to observation.

This conveyance is subject to and includes all other easements, covenants and restrictions of record as they may lawfully apply to the aforesaid property.

This deed was prepared without the benefit of a title search by the preparer.

This deed is exempt from recording tax pursuant to Section 58.1-811(D) 1950 code of Virginia, as amended.

(This space intentionally left blank - signatures appear on the next page)

WITNESS the following signature and seal.

Jonathan Chad Little (SEAL)
JONATHAN CHAD LITTLE

Elizabeth Ann Slate Little (SEAL)
ELIZABETH ANN SLATE LITTLE

STATE OF VIRGINIA

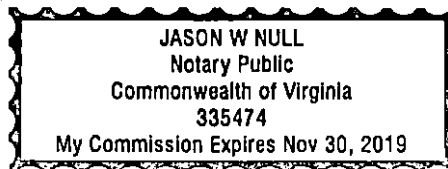
CITY/COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this 9 day of
January, 2017, by Jonathan Chad Little.

Jason W Null
Notary Public

Registration No. 335474

My commission expires: 11/30/2019.

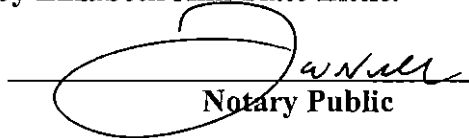


The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

STATE OF VIRGINIA

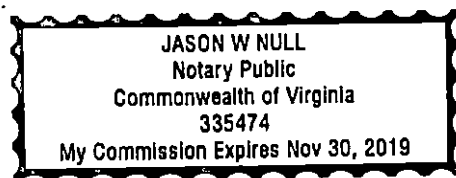
CITY/COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this 5 day of
January, 2017, by Elizabeth Ann Slate Little.


Notary Public

Registration No. 335474

My commission expires: 11/30/2019.



INSTRUMENT #170000110
RECORDED IN THE CLERK'S OFFICE OF
SMYTH ON
JANUARY 17, 2017 AT 11:06AM

JOHN H. GRAHAM, CLERK
RECORDED BY: AAM

The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

Instrument Control Number

BK 856 PG 00262

2705

RECEIVED
CLERK'S OFFICE
2013 OCT 21 AM 11:47

Commonwealth of Virginia
Land Record Instruments
Cover Sheet - Form A

[ILS Cover Sheet Agent Online Version 2.0.9.15]

INSTRUMENT #130002705
RECORDED IN THE CLERK'S OFFICE OFSMYTH ON
OCTOBER 21, 2013 AT 11:49AM

\$165.00 GRANTOR TAX WAS PAID AS
 REQUIRED BY SEC 58.1-802 OF THE VA. CODE
 STATE: \$82.50 LOCAL: \$82.50

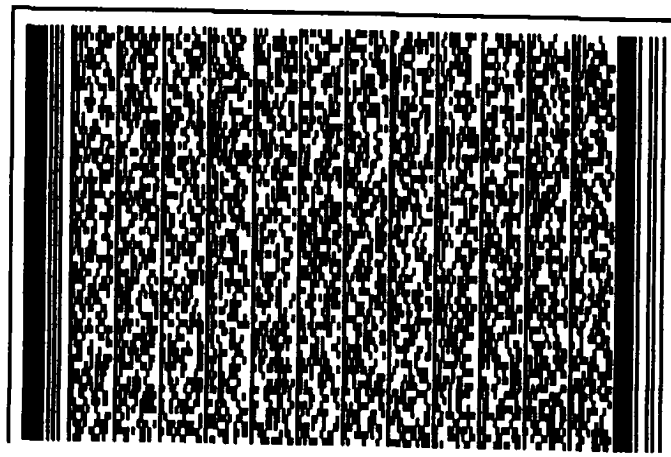
T A X P E X E M P T	C	Date of Instrument	[10/21/2013]
	O	Instrument Type	[DBS]
	R	Number of Parcels	[1]
	P	Number of Pages	[3]
		City ☐ County ☒ [Smyth County]	

(Box for Deed Stamp Only)
 JOHN H. GRAHAM, CLERK
 RECORDED BY: ALB

First and Second Grantors			
Last Name	First Name	Middle Name	Suffix
☐ [Gransden]	☐ [Stephen]	☐ [S.]	☐ []
☐ []	☐ []	☐ []	☐ []
First and Second Grantees			
Last Name	First Name	Middle Name	Suffix
☐ [Little]	☐ [Jonathan]	☐ [Chad]	☐ []
☐ [Little]	☐ [Elizabeth]	☐ [Ann Slate]	☐ []
Grantee Address (Name)		[Jonathan Chad Little and Elizabeth Ann Slate Little]	
(Address 1)		[P. O. Box 36]	
(Address 2)		[]	
(City, State, Zip)		[Saltville] [VA] [24370]	
Consideration [165,000.00]	Existing Debt [0.00]	Assumption Balance [0.00]	

Prior Instr. Recorded at: City ☐ County ☒ [Smyth County]	Percent. in this Juris.(%) [100]
Book [] Page [] Instr. No []	
Parcel Identification No (PIN)	[41-A-55B & 41-A-55H]
Tax Map Num. (if different than PIN)	[Tract 1 & Tract 2]
Short Property Description	[Rich Valley and North Fork Magisterial District]
Current Property Addr(Address 1)	[616 Lions Club Drive]
(Address 2)	[]
(City, State, Zip)	[Saltville] [VA] [24370]

Instrument Prepared by	[The Grayson Law Firm, P. C.]
Recording Paid for by	[Blue Ridge Title & Settlement]
Return Recording to (Name)	[Blue Ridge Title & Settlement Agency, LLC]
(Address 1)	[201 E. Main Street, Suite 101]
(Address 2)	[]
(City, State, Zip)	[Marion] [VA] [24354]
Customer Case ID	[] [CS-805457]



PREPARED BY: BRANDON R. BOYLES, ESQ. – VSB Number 72755

RETURNED TO: Blue Ridge Title & Settlement Agency, LLC

TAX MAP NO.: 41-A-55B & 41-A-55H

TAX ASSESSMENT: \$96,000

THIS DEED, Made this 21st day of October, 2013, by and between STEPHEN S. GRANSDEN, Grantor, and JONATHAN CHAD LITTLE and ELIZABETH ANN SLATE LITTLE, husband and wife as tenants by the entirety whose address is P. O. Box 36, Saltville, Virginia 24370, Grantees.

-WITNESSETH-

That for and in consideration of the sum of ONE HUNDRED SIXTY FIVE THOUSAND DOLLARS (\$165,000.00), cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged, the said Grantor does hereby grant and convey unto the said Grantees, in fee simple, with General Warranty and Modern English Covenants of Title and as tenants by the entirety with right of survivorship as at common law, the following described property, to wit;

Those certain tracts or parcels of land lying and being on Virginia Secondary Highway No. 746 to the Old Rich Valley Quarry, in Saltville Election District (Rich Valley Magisterial District) and in North Fork District, Smyth County, Virginia, and described as follows:

The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

TRACT NO. 1:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of **BEGINNING**. .

LESS AND EXCEPT 0.50 acres conveyed to William A. DeBord, Jr. by deed dated February 08, 2001 and recorded in Deed Book 561, Page 116.

TRACT NO. 2:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, CLS, dated February 7, 2001, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 309, Page 13 and reference is here made to said plat for a more particular description of the premises.

Being the same property conveyed to Stephen S. Gransden, by Deed from Heather W. Salmons (formerly Heather W. Gransden), dated July 14, 2009, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 783, Page 733.

Reference to said survey and deed is here made for a more definite description of the property herein conveyed and for chain of title.

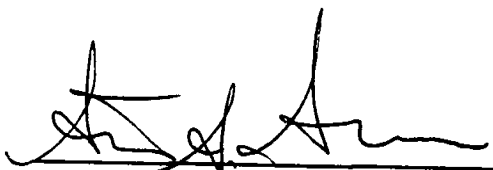
The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348

This property is SUBJECT to such rights-of-way or easements for access by others or utilities which are of record in the aforesaid Clerk's Office or are apparent to observation.

This conveyance is subject to and includes all other easements, covenants and restrictions of record as they may lawfully apply to the aforesaid property.

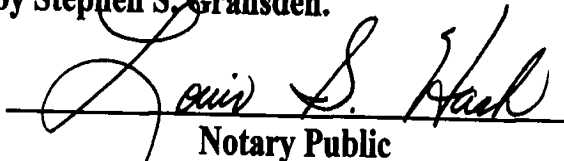
This deed was prepared without the benefit of a title search by the preparer.

WITNESS the following signature and seal.

 (SEAL)
STEPHEN S. GRANSDEN

STATE OF Virginia
CITY/COUNTY OF Smyth, to-wit:

The foregoing instrument was acknowledged before me this 21st day of October, 2013, by Stephen S. Gransden.


Notary Public

Registration No. 4066426

My commission expires: 12-31-2014.

The Grayson Law Firm, P.C.
108 Courthouse Street, Suite A
P.O. Box 253
Independence, Virginia 24348



LOUIS S. HAHN
NOTARY PUBLIC
COMMONWEALTH OF VIRGINIA
COMMISSION NO. 4066426

Louis

2093

THIS DEED made this 14th day of July, 2009, by and between **HEATHER W. SALMONS** (formerly Heather W. Gransden), divorced, **Grantor**, party of the first part, and **STEPHEN S. GRANSDEN**, **Grantee**, party of the second part;

RECEIVED
CIRCUIT COURT CLERK
SMYTH COUNTY VIRGINIA
2009 JUL 28 PM 2:43

: W I T N E S S E T H :

THAT FOR AND IN CONSIDERATION OF THE SUM OF TEN THOUSAND DOLLARS (\$10,000.00), cash in hand paid, the receipt of which is hereby acknowledged, and further, in accordance with Article 4.1 of the Property Settlement Agreement by and between Stephen Gransden and Heather W. Gransden dated January 29, 2009, the said party of the first part does hereby **GRANT AND CONVEY** with General Warranty unto the said party of the second part, all of her right, title and interest in and to those certain tracts or parcels of land lying and being on Virginia Secondary Highway No. 746 to the Old Rich Valley Quarry, in Saltville Election District (Rich Valley Magisterial District) and in North Fork District, Smyth County, Virginia, and described as follows:

TRACT NO. 1:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to an iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of BEGINNING . . .

LAW OFFICES
BURKE, GRAYBEAL AND HAMMER
111 NORTH CHURCH STREET
MARION, VIRGINIA 24354

TRACT NO. 2:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, CLS, dated of February 7, 2001, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 309, Page 13.

The aforesaid property is the same property conveyed to Stephen S. Gransden and Heather W. Gransden (now Heather W. Salmons) by William A. DeBord *et ux* by deed dated October 21, 2005, and recorded in the Clerk's Office of Smyth County, Virginia, in Deed Book 691, Page 271.

Stephen S. Gransden and Heather W. Gransden were divorced by Final Judgment of Divorce entered in the Superior Court of New Jersey, Chancery Division-Family Part, Ocean County, on January 29, 2009.

The aforesaid property is subject to all easements, restrictions, and reservations of record in the Clerk's Office of Smyth County, Virginia, in the chains of title to said property.

WITNESS THE FOLLOWING SIGNATURE AND SEAL:

Heather W. Salmons (SEAL)
HEATHER W. SALMONS

STATE OF New Jersey
CITY/COUNTY OF Ocean, to-wit:

I, Jane S. Shuff, a notary public in and for the State of New Jersey, and
State aforesaid do hereby certify that Heather W. Salmons, whose name is on
foregoing writing bearing date on the 14th day of July, 2009, has acknowledged the same before
me in my County and State aforesaid.

Given under my hand and seal this 22nd day of July, 2009.

My Commission Expires: October 22, 2010

Registration No. _____

Jane S. Shuff
Notary Public

LAW OFFICES
BURKE, GRAYBEAL AND HAMMER
111 NORTH CHURCH STREET
MARION, VIRGINIA 24354

Jane S. Shuff
Notary Public Of New Jersey
Commission Expires October 22, 2010

PREPARED BY:
LOWE & MONEY, P.C.
117 NORTH PARK STREET
MARION, VIRGINIA 24354

3953
RECEIVED
CIRCUIT COURT OF
SMYTH COUNTY
2005 OCT 21 PM 4:07

THIS DEED MADE THIS 21ST DAY OF OCTOBER, 2005, by and between WILLIAM A. DEBORD and SHIRLEY B. DEBORD, husband and wife, parties of the first part, referred to herein as the Grantors, and STEPHEN S. GRANSDEN and HEATHER W. GRANSDEN, husband and wife, parties of the second part, referred to herein as the Grantees;

: W I T N E S S E T H :

THAT FOR AND IN CONSIDERATION OF THE SUM OF ONE HUNDRED AND FIFTY THOUSAND DOLLARS (\$150,000.00), cash in hand paid, the receipt of which is hereby acknowledged, the parties of the first part do hereby BARGAIN, SELL, GRANT AND CONVEY with General Warranty of Title and with the English Covenants unto the parties of the second part as Tenants by the Entirety with Full Right of Survivorship as at Common Law, those certain tracts or parcels of land lying and being in Smyth County, Virginia, and described as follows:

TRACT NO. 1: That certain tract or parcel of land, with all appurtenances thereunto belonging, situate, lying and being on Virginia Secondary Highway No. 746, near the old Rich Valley Quarry, in Saltville Election District, (Rich Valley Magisterial District), Smyth County, Virginia, and more particularly bounded and described as follows, to-wit;

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to an iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of BEGINNING, and being that same property conveyed by deed dated June 2, 1993, from Hershiel A. Russell et ux to William A. DeBord et ux, and recorded in the Office of the Clerk of the Circuit Court of Smyth County, Virginia, in Deed Book 439, Page

274.

TRACT NO. 2: That certain tract or parcel of land lying and being in North Fork District, Smyth County, Virginia, and described as follows:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, Certified Land Surveyor, bearing date of February 7, 2001, a copy of which is of record in the Circuit Court Clerk's Office of Smyth County, Virginia, at Slide 309, Page 13.

Being that same property conveyed by deed dated November 6, 2003, from William A. DeBord, Jr. et ux to William A. DeBord et ux, and recorded in the aforesaid Clerk's Office in Deed Book 636, Page 581.

This conveyance is made expressly subject to the restrictions, conditions, rights of way, and easements, if any, contained in the instruments constituting the chain of title to the property conveyed herein.

WITNESS THE FOLLOWING SIGNATURES AND SEALS:

William A. DeBord (SEAL)
WILLIAM A. DEBORD
Shirley B. DeBord (SEAL)
SHIRLEY B. DEBORD

STATE OF VIRGINIA:

COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this 20th day of October, 2005, by WILLIAM A. DEBORD and SHIRLEY B. DEBORD.

My commission expires: 10/31/2005

Connie J. Brown
NOTARY PUBLIC

GRANTEES MAILING ADDRESS:

Stephen S. + Heather W. Gransden
1632 Main Street
West Creek NJ 08092

INSTRUMENT #050003953
RECORDED IN THE CLERK'S OFFICE OF
SMYTH ON
OCTOBER 21, 2005 AT 04:06PM
\$150.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: \$75.00 LOCAL: \$75.00
JIMMY L. WARREN, CLERK

RECORDED BY: TTJ

J. L. M

RK0439 PG274

THIS DEED, made and entered into this the 2nd day of June, 1993, by and between HERSHIEL A. RUSSELL and MARY A. RUSSELL, his wife, GRANTORS, and WILLIAM A. DEBORD and SHIRLEY B. DEBORD, his wife, GRANTEES, whose tax mailing address is RT3 Box 15A, Saltville Va: 24370

W I T N E S S E T H

THAT FOR and in consideration of the sum of FIFTY EIGHT THOUSAND (\$58,000.00) DOLLARS cash in hand paid by the Grantees unto the Grantors, the receipt of all of which being hereby acknowledged, the said Grantors do hereby BARGAIN, SELL, GRANT, AND CONVEY unto the Grantees with COVENANTS OF GENERAL WARRANTY OF TITLE AND THE ENGLISH COVENANTS, and as TENANTS BY THE ENTIRETIES WITH THE RIGHT OF SURVIVORSHIP AT COMMON LAW, all of that certain tract or parcel of land, with all appurtenances thereunto belonging, situate, lying and being on Virginia State Secondary Highway No. 746, near the old Rich Valley Quarry, in Saltville Election District, (Rich Valley Magisterial District), Smyth County, Virginia, and more particularly bounded and described as follows, to-wit:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to an iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of BEGINNING, and

BK0439 PG275

being the same property conveyed to Hershiel (Hershel) A. Russell and Mary A. Russell, his wife, by Deed of William C. ATerry, et ux, dated March 20, 1987, and of record in the Circuit Court Clerk's Office of Smyth County, Virginia, in Deed Book 370, Page 796.

This conveyance is made subject to the reservations, restrictions, conditions and easements of record in this chain of title.

WITNESS the following signatures and seals:

Hershiel A. Russell (SEAL)
Hershiel A. Russell

Mary A. Russell (SEAL)
Mary A. Russell

STATE OF: Virginia

CITY/COUNTY OF: Saltsville/Smyth, TO-WIT:

The foregoing instrument was acknowledged before me
this 4th day of June, 1993 by
Hershiel A. Russell and Mary A. Russell

Victoria L. Davidson
Notary Public

(My commission expires 5-31-96).

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE
CIRCUIT COURT OF SMYTH COUNTY, June
1993 This deed was this day presented in said
office and with certificate thereto annexed
admitted to record at 2:27 o'clock P. M.
after payment of tax imposed by Sec. 58-54.1.
\$58.00

Deed No. 1816 TESTE: JIMMY L. WARREN, CLERK
BY: Ralph L. Warren D.C.
Original Returned This Date To: H+G

370 PAGE 796

THIS DEED, made and entered into this 20th day of March, 1987 by and between WILLIAM C. TERRY AND DELORES S. TERRY, his wife, parties of the first part and HERSHIEL A. RUSSELL AND MARY A. RUSSELL, his wife, parties of the second part.

WITNESSETH:

That for and in consideration of the sum of FOURTEEN THOUSAND SEVEN HUNDRED FIFTY DOLLARS (\$14,750.00), cash in hand paid, the receipt of which is hereby acknowledged, the said parties of the first part do hereby grant, bargain, sell and convey with covenants of General Warranty of title and the English Covenants unto the parties of the second part as tenants by the entireties with full right of survivorship and to the survivor in fee simple as provided by common law and Section 55-21 of the 1950 Code of Virginia, all that certain tract or parcel of land lying and being on Virginia State Secondary Highway No. 746, near the Old Rich Valley Quarry, in Saltville Election District (Rich Valley Magisterial District), Smyth County, Virginia, and described as follows:

BEGINNING at an iron pin in the former line Mathieson Alkali Works, a corner to property retained by the parties of first part, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 63° 50' 422.75 feet to an iron pin a corner to Williams (formerly Walker); thence with Williams line, S 10° 21' W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79° 39' E 283.00 feet with the center line of the alley to an iron pin corner to Arnold (formerly Chapman); thence with the line of Arnold, S 08° 32' W 61.66 feet to an iron pin; thence S 11° 09' E 676.63 feet to an iron pin, a corner of Arnold and Hicks; thence for a division line between Hicks, Taylor and the property hereby conveyed, N 57° 15' W 1496.88 feet to an iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson Alkali Works, N 45° 00' E 780.06, plus or minus, feet to the point of beginning, and being a portion of the property conveyed unto William C. Terry, one of the parties of the first part, by deed of the Olin Corporation, dated January 26, 1970, and of record in the Clerk's Office of the Circuit Court of Smyth County, in Deed Book 236, Page 360.

GWYN. TATE & TATE
ATTORNEYS AT LAW
MARION, VIRGINIA

This conveyance is made subject to all restrictions, reservations, conditions and easements of record concerning this property, and particularly

BOOK 370 PAGE 797

to those set forth in Deed Book 236, Page 360. It is further understood that the description hereof is to the aforesaid 10 foot alley. The use thereof is reserved for the parties of the first part, their successors and heirs, and for any other persons having a prior use to said alley.

Taxes for the year 1987 to be pro-rated and paid by the parties of the second part. Possession to be given upon delivery of the deed.

WITNESS the following signatures and seals:

William C. Terry (SEAL)
William C. Terry

Delores S. Terry (SEAL)
Delores S. Terry

STATE OF VIRGINIA, AT LARGE:

The foregoing instrument was acknowledged before me in

Salisbury, Virginia, this 1 day of April, 1987 by
William C. Terry and Delores S. Terry.

My Commission expires July 24 - 87.

[Signature]
NOTARY PUBLIC

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE
CIRCUIT COURT OF SMYTH COUNTY Apr. 7 1987.
This deed was this day presented in said office
and with certificate thereto annexed admitted to
record at 4:45 o'clock P.M. after payment of
tax imposed by Sec. 58-54.1.

ST 22 OCT 74 TIF 1 CE CF 10 038 75 220 7.50

Deed No. 928

TESTE: Jimmy L. Warren, Clerk
BY: [Signature] D.C.

THIS DEED, made this 26th day of January, 1970, by
and between OLIN CORPORATION (formerly Olin Mathieson Chemical
Corporation), grantor and first party, hereinafter called Olin,
and WILLIAM C. TERRY, grantee and second party, hereinafter
called Terry, and SMYTH COUNTY PUBLIC SERVICE AUTHORITY,
third party, hereinafter called the Public Service Authority;

W I T N E S S E T H:

That for and in consideration of EIGHT THOUSAND
NINE HUNDRED NINETY-SEVEN and NO/100 (\$8,997.00) DOLLARS,
cash in hand paid, receipt of which is hereby acknowledged,
Olin does hereby grant, bargain, sell and convey, upon the
terms and conditions hereinafter specified, and subject to
the exceptions and reservations hereinafter set out, to
Terry, with covenants of general warranty, that certain
tract or parcel of land lying and being on Virginia State
Secondary Highway No. 746, near the Old Rich Valley Quarry,
in Saltville Magisterial District of Smyth County, Virginia,
and particularly bounded and described as follows, to-wit:

BEGINNING at a cross in a stone
monument corner to land of Sallie Terry and
to other land of Olin; thence leaving other
land of Olin and with three lines of Terry
S 16° 02' E 142.63 feet to an iron pin;
S 35° 37' E 610.99 feet to an iron pin; S
6° 38' W 356.23 feet to an iron pin in the
center line of Virginia State Secondary
Highway No. 746 corner to Edward Chapman;

Approved as to Engineering

Chief Engineer

3-31-70

Mailed to:
Wm. C. Stewart
P.O. Box 759
Abingdon, Va. 24210
5/11/70

thence leaving Terry and with the center line of the Road and with a line of Chapman N 80° 41' W 397.5 feet to a point corner to J. S. Walker; thence leaving Chapman and with Walker continuing on the same bearing and with the center line of the Road 209.52 feet to a point corner to Walker; thence with two lines of Walker, continuing with the center line of the Road, N 34° 35' E 17.50 feet to an iron pin; N 63° 50' W 80.00 feet to a point corner to Walker; thence leaving the Road and with two lines of Walker S 10° 21' W 408.28 feet to an iron pin in the center line of a 10-foot alley; S 79° 39' E 283.0 feet with the center line of the alley to an iron pin corner to Edward Chapman; thence with two lines of Chapman S 08° 32' W 61.66 feet to an iron pin; S 11° 09' E 676.63 feet to an iron pin corner to Chapman and W. T. Hicks; thence leaving Chapman and with one line of Hicks and with the existing fence N 57° 15' W 891.68 feet to a point, corner to J. M. Taylor Estate; thence leaving Hicks and with one line of the Taylor Estate, continuing on the same bearing, and with the fence 605.2 feet to an iron pin in a line of other land of Olin; thence leaving the Taylor Estate and with one line of other land of Olin and with the fence N 45° 00' E 780.06 feet to an iron pin; thence leaving the fence and with one line of other land of Olin N 46° 28' E 948.41 feet to the point of BEGINNING, containing 30.23 acres, more or less.

Part of the tract of land hereinabove described and hereby conveyed is the same land which was conveyed to The Mathieson Alkali Works (predecessor corporation to Olin) by R. L. Brown and wife by deed dated October 9, 1925, of record in the Clerk's Office of the Circuit Court of Smyth County, Virginia, in Deed Book No. 54, at page 223, and the residue is the same land which was conveyed to said The Mathieson Alkali Works by

Nannie K. Shreeves et al by deed dated September 5, 1925, of record in said Clerk's Office in Deed Book No. 54, at page 224, to which deeds, so of record, reference is here made.

This conveyance is made subject to the easement of the above-mentioned Virginia State Secondary Highway No. 746 as presently located and fenced across a part of the land hereby conveyed, and is further made subject to such rights of passage, if any, as any third parties may now possess in and to a certain unmarked 10-foot alley mentioned in the deeds contained in Olin's chain of title and set out in the description hereinabove as running eastwardly across the land hereby conveyed to an iron pin at the above-mentioned corner of Edward Chapman with D. R. Walker.

It is expressly understood and agreed that Olin does hereby except and reserve to itself, its successors and assigns, all minerals, salt, brine, limestone, plaster, oil and gas in, under or upon the land hereby conveyed, together with all reasonable rights of ingress and egress, on, under, over and through said land for the purpose of exploring for, mining, developing and removing said minerals, salt, brine, limestone, plaster, oil and gas, together with such other rights and easements as are necessary or convenient for the enjoyment of the property and rights so excepted and reserved and Olin, its successors and assigns, shall also have the right to transport on, under, over and through the land hereby conveyed any minerals, salt, brine, limestone, plaster, oil, gas and stone which Olin, its successors and assigns, may mine or take from other lands belonging to Olin or in which it may have an interest, or which it may lease.

It is further expressly understood and agreed that Olin does hereby except and reserve to itself, its successors and assigns, and they shall have the right, privilege and authority to continue, maintain and operate any pipe line or lines now laid under or through said land, and to lay, maintain and operate on, under, over and through said land, any additional pipe lines it or they may desire for conveying oil, gas, water, brine or any other liquids used by Olin, its successors and assigns, in connection with its or their operations, or for any other of its or their purposes; also the right, privilege and authority to erect, string, continue, maintain and operate any overhead tramways, cables, wires, poles and other appliances for overhead transport, electrical transmission and telephone communication or other uses and purposes on, over and through said land, together with all reasonable rights of ingress and egress on, under, over and through the said land for the purpose of laying, placing, erecting, repairing, maintaining and operating said pipe lines, overhead tramways, cables, wires, poles and other appliances.

It is further expressly understood and agreed that Olin does hereby except and reserve for the benefit of the Public Service Authority, its successors and assigns, and this conveyance is subject to, the right, privilege and authority of the Public Service Authority, its successors and assigns, to continue, maintain and operate any water or sewer pipe line or lines now laid on, under, over and through said land and Olin does hereby grant to the Public Service Authority, the aforesaid right, privilege and authority together with the right, privilege and authority to lay, maintain and operate on, under, over and through said land, any such additional pipe line or lines as it

may desire for conveying water or sewage, together with all reasonable rights of ingress and egress under, on, over and through the said land for the purpose of laying, maintaining, replacing and operating said pipe line or lines.

Olin or the Public Service Authority, whichever shall have caused the damage, its successors and assigns, shall compensate Terry, his heirs and vendees, for any actual damage done to the surface of the land hereby conveyed, and to any improvements thereon, by the exercise of the said rights reserved by or for or granted to them, respectively.

If Olin or the Public Service Authority, whichever shall have caused the damage, its successors and assigns, and Terry, his heirs and vendees, cannot agree upon the amount of such damage, then the dispute shall be submitted to two arbitrators, who shall be chosen, one by Olin or the Public Service Authority, whichever shall have caused the damage, or its successors and assigns, and the other arbitrator shall be chosen by Terry, his heirs and vendees, and if the two such arbitrators are unable to agree, they shall select a third to whom the dispute shall be submitted and whose decision shall be final and binding upon the parties.

IN TESTIMONY WHEREOF, Olin has caused its corporate name to be signed hereto by R. N. Williams, a Vice-President, and its seal to be affixed, attested by R. C. Burroughs, an Assistant Secretary, this the day and year first above written.

OLIN CORPORATION

By

R. N. Williams

Vice-President & General Manager
Chemicals Division

Attest:

R. C. Burroughs

Assistant Secretary



CRH
9/21/70

STATE OF CONNECTICUT)
) To-wit:
 COUNTY OF FAIRFIELD)

I, Diane E. Walsh, a Notary Public
 in and for the County aforesaid, in the State of Connecticut,
 do hereby certify that R. N. Williams, Vice-
 President, and R. C. Burroughs, an Assistant
 Secretary, of Olin Corporation, whose names as such are signed
 to the foregoing deed bearing date on the 26th day of January,
 1970, have this day acknowledged the same before me in my
 County aforesaid.

My term of office expires March 31, 1974.

Given under my hand and notarial seal this 13th
 day of April, 19 70.

Diane E. Walsh
 Notary Public

DIANE E. WALSH
 NOTARY PUBLIC
 MY COMMISSION EXPIRES MAR. 31, 1974

VIRGINIA: In the Clerk's Office of the Circuit Court of Smyth County, this 23 day of April,
 19 70, the foregoing writing was presented and with the certificate annexed, admitted to
 record at 10⁰⁰ o'clock A M, after payment of \$ 9.00 tax imposed by Sec. 58-54 (b).

Teste: Robert E. Lumin, Clerk

(TAX VALUE-\$500.00; TAX MAP #41-A-55H)

THIS DEED MADE THIS 6th DAY OF November 2003, by and between WILLIAM A. DEBORD, JR., and EMILY G. DEBORD, husband and wife, Grantors, parties of the first part and WILLIAM A. DEBORD and SHIRLEY B. DEBORD, husband and wife, Grantees, parties of the second part;

: W I T N E S S E T H :

THAT FOR AND IN CONSIDERATION OF THE SUM OF **FIVE THOUSAND SEVENTY-FIVE DOLLARS (\$5,075.00)**, cash in hand paid, which consideration the grantors herein do hereby acknowledge to be good and sufficient, the receipt of which is hereby acknowledged, the parties of the first part do hereby BARGAIN, SELL, GRANT and CONVEY, with General Warranty and with the English Covenants, unto the said parties of the second part as tenants by the entirety with right of survivorship, as at common law that certain tract or parcel of land lying and being in North Fork District, Smyth County, Virginia, and described as follows:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, Certified Land Surveyor, bearing date of February 7, 2001, a copy of which is of record in the Circuit Court Clerk's Office of Smyth County, Virginia, at Slide 309, Page 13.

The aforesaid property is the same property conveyed to William A. DeBord, Jr., by William A. DeBord et ux by deed dated February 8, 2001, and of record in the Circuit Court Clerk's Office of Smyth County, Virginia, at Deed Book 561, Page 116.

There is conveyed herewith the easements and rights appurtenant set forth in the hereinabove mentioned deed.

Subject to any and all easements, restrictions, reservations, and rights of way affecting said property.

Together with all and singular the buildings and improvements thereon, the tenements, hereditaments and appurtenances thereunto belonging or in anywise appertaining.

This conveyance is made subject to the conditions, restrictions, easements, and reservations of record, if any, affecting the aforesaid property and constituting constructive notice.

The parties of the first part covenant that they are seized in fee simple of said land; that they have the right to convey the said property to the grantees herein named; that the said grantees shall have quiet and peaceful possession of said property, free from all encumbrances; that the parties of the first part have done no act to encumber the said property; that they, the said

RECEIVED
CIRCUIT COURT CLERK
SMYTH COUNTY
2003 NOV 14
4:09:10

4659

parties of the first part, will execute such further assurances of said property as may be requisite.

WITNESS THE FOLLOWING SIGNATURES AND SEALS:

William A. DeBord, Jr. (SEAL)
William A. DeBord, Jr.

Emily G. DeBord (SEAL)
Emily G. DeBord

STATE OF VIRGINIA

COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this the 10th day of November 2003, by William A. DeBord, Jr.

My Commission Expires: June 30, 2007

Ireva K. Frye
Notary Public

STATE OF VIRGINIA

COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this the 10th day of November 2003, by Emily G. DeBord.

My Commission Expires: June 30, 2007

Ireva K. Frye
Notary Public

AFTER RECORDING THIS DOCUMENT SHOULD BE MAILED TO:

This deed was prepared by Michael E. Untiedt, Attorney at Law,
P. O. Box 668, Marion, Virginia 24354. Phone: 276-783-6193.
FAX: 276-783-6194. E-Mail to michaelu@area-net.com

DeBord, William A., Jr. R-03.001

INSTRUMENT #030004659
RECORDED IN THE CLERK'S OFFICE OF
SMYTH COUNTY, VIRGINIA
NOVEMBER 14, 2003 AT 09:09AM
REQUIRE BY SEC 55.1-802 OF THE VA. CODE
STATE: \$2.75 LOCAL: \$2.75
JIMMY L. WARREN, CLERK

2

BY:

Emily G. DeBord
Emily G. DeBord

(DC)

COURT 2-13 SMYTH COUNTY, 2001. This deed was this day presented in said office and with certificate thereto annexed, admitted, recorded at .m. after payment of tax imposed by §58-54.1 Deed No: 418

TESTE: Jimmy L. Warren, Clerk

DK0561

PG116

(TAX VALUE-\$500; TAX MAP #41-A-55H)

THIS DEED OF GIFT MADE THIS 8TH DAY OF FEBRUARY, 2001, by and between WILLIAM A. DeBORD and SHIRLEY B. DeBORD, husband and wife, Grantors, parties of the first part and WILLIAM A. DeBORD, JR., single, Grantee, party of the second part;

: W I T N E S S E T H :

THAT FOR AND IN CONSIDERATION OF THE LOVE AND AFFECTION THE parties of the first part have for their son, the party of the second part, which consideration the grantors herein do hereby acknowledge to be good and sufficient, the receipt of which is hereby acknowledged, the parties of the first part do hereby BARGAIN, SELL, GRANT and CONVEY, with General Warranty and with the English Covenants, unto the said party of the second part that certain tract or parcel of land lying and being in North Fork District, Smyth County, Virginia, and described as follows:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, Certified Land Surveyor, bearing date of February 7, 2001, a copy of which is hereto attached and made a part hereof.

The aforesaid property is part of the same property conveyed to William A. DeBord et ux by deed of record in the Circuit Court Clerk's Office of Smyth County, Virginia, at Deed Book 439, Page 274.

Prepared by the
LAW OFFICE OF
MICHAEL E. UNTIEDT
FIRST UNION BANK BUILDING
102 EAST MAIN STREET
P.O. BOX 668
MARION, VA 24354
(540) 783-6193
(540) 783-6194 FAX

Shirley 309 #13

There is conveyed herewith for the benefit of the property herein conveyed and this property is subject to and shall have the benefit of that 20 foot wide right of way over existing gravel entrance, the centerline of which is shown on the attached plat bearing date of February 7, 2001. This right of way and or easement is for the following purposes:

1. vehicular access to and from State Secondary Route 746; and
2. the laying and maintaining of underground utilities, including but not limited to water lines, sewer lines, electric lines, telephone lines and cable lines.

Furthermore, this grant is to include the right to improve the right of way at any time which right shall include but not be limited to ordinary maintenance, capping, or paving. Said maintenance and improvements are to be done in such a manner as to not unduly interfere with any other access of the said right of way. The right of way and easements shall run from State Secondary Highway #746 to the southeastern boundary of the property herein conveyed as shown on the attached map or plat, which right of way is 10 feet to each side of the shown center line for a total of 20 feet in width.

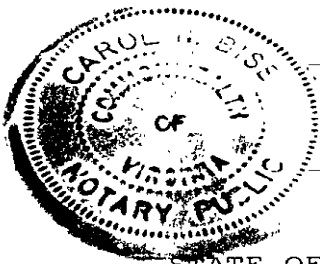
Subject to any and all easements, restrictions, reservations, and rights of way affecting said property.

Together with all and singular the buildings and improvements thereon, the tenements, hereditaments and appurtenances thereunto belonging or in anywise appertaining.

This conveyance is made subject to the conditions, restrictions, easements, and reservations of record, if any, affecting the aforesaid property and constituting constructive notice.

The parties of the first part covenant that they are seized in fee simple of said land; that they have the right to convey the said property to the grantee herein named; that the said grantee shall have quiet and peaceful possession of said property, free from all encumbrances; that the parties of the first part have done no act to encumber the said property; that they, the said parties of the first part, will execute such further assurances of said property as may be requisite.

WITNESS THE FOLLOWING SIGNATURES AND SEALS:



William A. DeBord

William A. DeBord

(SEAL)

Shirley B. DeBord

Shirley B. DeBord

(SEAL)

STATE OF VIRGINIA

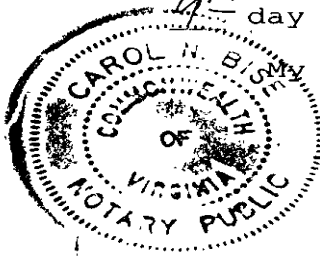
COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this the

9th

day of *FEBRUARY*, 2001, by William A DeBord.

Commission Expires: *01/31/04*



Carol N. Bise

Notary Public

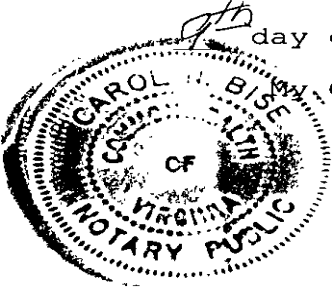
STATE OF VIRGINIA

COUNTY OF SMYTH, to-wit:

The foregoing instrument was acknowledged before me this the

1st day of February, 2001, by Shirley B. DeBord.

Commission Expires:

01/31/04Carol N. Bise
Notary Public

AFTER RECORDING THIS DOCUMENT SHOULD BE MAILED TO:

INSTRUMENT #010000418
RECORDED IN THE CLERK'S OFFICE OF
SMYTH ON
FEBRUARY 13, 2001 AT 09:39AM
JIMMY L. WARREN, CLERKBY: Jimmy J. Liles (DC)Shirley B. DeBord

PLAT

Instrument #01116

Recorded 02-13-2001

SLIDE 309 #13

Deed Book: 561 Page 116

TR: NORTH FORK DISTRICT

Grantors: DeBord, William A. & Shirley B.

Grantee: DeBord, William A.; Jr

01116

DeBord, William A & Shirley B
GRANTOR
DeBord, William A; Jr

GRANTEE

DESCRIPTION

BOOK | PAGE
561 | 116

TR North Fork Dist SLIDE 309 | 13

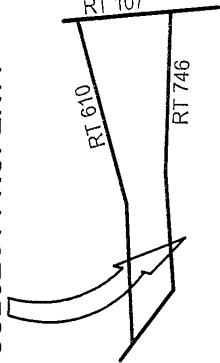
KIND DATE OF DEED 02-08-01 DATE RECORDED 02-13-01

PM

DEED RECORD

Id	Bearing	Distance
L1	S 16°35'14" W	55.70'
L2	S 07°05'55" W	78.55'
L3	S 18°51'15" W	86.64'
L4	S 30°27'54" W	85.07'
L5	S 56°11'51" W	374.69'
L6	S 48°53'14" W	71.60'
L7	S 54°24'50" W	76.30'

SUBJECT PROPERTY



LOCATION MAP

PLAT
SHOWING A PART OF THE

WILLIAM A. DEBORD

&

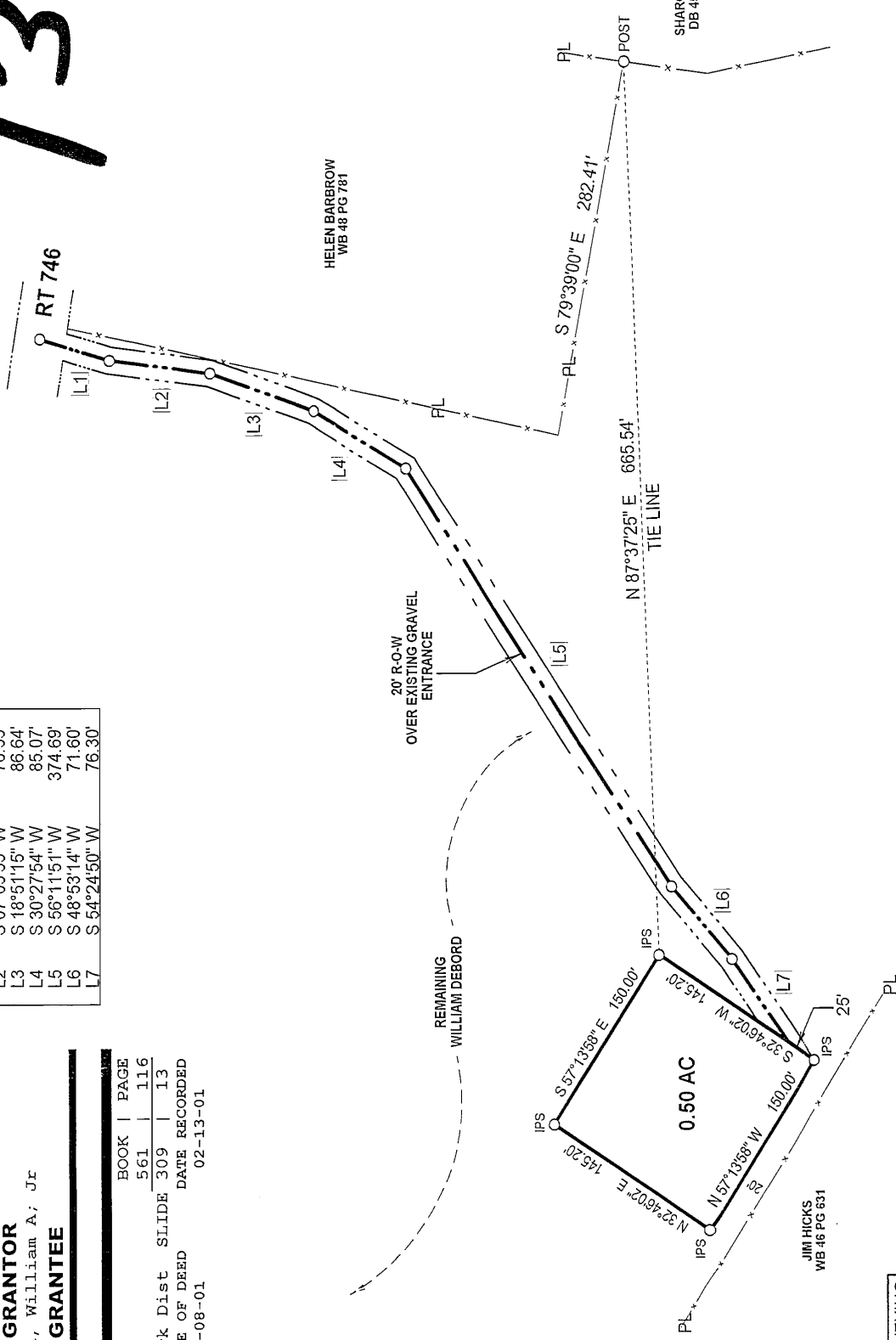
SHIRLEY B. DEBORD

PROPERTY

BEING A PART OF DB 439 PG 274

LOCATED IN THE NORTH FORK DISTRICT
SMYTH COUNTY VIRGINIA

FEB. 7, 2001



GALE MAIDEN LAND SURVEYING
31717 OLD SALTWORKS ROAD
MEADOWVIEW, VA. 24361
PH. 540 944 5774
FAX 540 944 5642

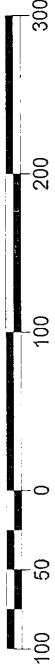


NO TITLE REPORT FURNISHED
SUBJECT TO ANY EXISTING EASEMENTS OR RIGHT OF WAYS ON RECORD
I CERTIFY THAT THIS PLAT REPRESENTS AN ACTUAL ON THE GROUND SURVEY AND NO EASEMENTS OR ENCROACHMENTS ARE VISIBLE
ON THE GROUND OTHER THAN SHOWN THEREON.
I HEREBY CERTIFY THAT THIS SURVEY TO THE BEST OF MY KNOWLEDGE AND BELIEF IS CORRECT AND COMPLIES WITH THE MINIMUM
PROCEDURES AND STANDARDS ESTABLISHED BY THE VIRGINIA STATE BOARD OF ARCHITECTS, PROFESSIONAL ENGINEERS, LAND
SURVEYORS, AND CERTIFIED LANDSCAPE ARCHITECTS.



Gale Maiden

1 INCH = 100 FEET



DRAWN BY B. ROBBINS

RK0439 PG274

THIS DEED, made and entered into this the 2nd day of June, 1993, by and between HERSHIEL A. RUSSELL and MARY A. RUSSELL, his wife, GRANTORS, and WILLIAM A. DEBORD and SHIRLEY B. DEBORD, his wife, GRANTEES, whose tax mailing address is RT3 Box 15A, Saltville Va: 24370

W I T N E S S E T H

THAT FOR and in consideration of the sum of FIFTY EIGHT THOUSAND (\$58,000.00) DOLLARS cash in hand paid by the Grantees unto the Grantors, the receipt of all of which being hereby acknowledged, the said Grantors do hereby BARGAIN, SELL, GRANT, AND CONVEY unto the Grantees with COVENANTS OF GENERAL WARRANTY OF TITLE AND THE ENGLISH COVENANTS, and as TENANTS BY THE ENTIRETIES WITH THE RIGHT OF SURVIVORSHIP AT COMMON LAW, all of that certain tract or parcel of land, with all appurtenances thereunto belonging, situate, lying and being on Virginia State Secondary Highway No. 746, near the old Rich Valley Quarry, in Saltville Election District, (Rich Valley Magisterial District), Smyth County, Virginia, and more particularly bounded and described as follows, to-wit:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to an iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of BEGINNING, and

BK0439 PG275

being the same property conveyed to Hershiel (Hershel) A. Russell and Mary A. Russell, his wife, by Deed of William C. ATerry, et ux, dated March 20, 1987, and of record in the Circuit Court Clerk's Office of Smyth County, Virginia, in Deed Book 370, Page 796.

This conveyance is made subject to the reservations, restrictions, conditions and easements of record in this chain of title.

WITNESS the following signatures and seals:

Hershiel A. Russell (SEAL)
Hershiel A. Russell

Mary A. Russell (SEAL)
Mary A. Russell

STATE OF: Virginia

CITY/COUNTY OF: Saltsville/Smyth, TO-WIT:

The foregoing instrument was acknowledged before me
this 4th day of June, 1993 by
Hershiel A. Russell and Mary A. Russell

Victoria L. Davidson
Notary Public

(My commission expires 5-31-96).

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE
CIRCUIT COURT OF SMYTH COUNTY, June
1993 This deed was this day presented in said
office and with certificate thereto annexed
admitted to record at 2:27 o'clock P. M.
after payment of tax imposed by Sec. 58-54.1.
\$58.00

Deed No. 1816 TESTE: JIMMY L. WARREN, CLERK
BY: Ralph L. Thompson D.C.
Original Returned This Date To: H+G

370 PAGE 796

THIS DEED, made and entered into this 20th day of March, 1987 by and between WILLIAM C. TERRY AND DELORES S. TERRY, his wife, parties of the first part and HERSHIEL A. RUSSELL AND MARY A. RUSSELL, his wife, parties of the second part.

WITNESSETH:

That for and in consideration of the sum of FOURTEEN THOUSAND SEVEN HUNDRED FIFTY DOLLARS (\$14,750.00), cash in hand paid, the receipt of which is hereby acknowledged, the said parties of the first part do hereby grant, bargain, sell and convey with covenants of General Warranty of title and the English Covenants unto the parties of the second part as tenants by the entireties with full right of survivorship and to the survivor in fee simple as provided by common law and Section 55-21 of the 1950 Code of Virginia, all that certain tract or parcel of land lying and being on Virginia State Secondary Highway No. 746, near the Old Rich Valley Quarry, in Saltville Election District (Rich Valley Magisterial District), Smyth County, Virginia, and described as follows:

BEGINNING at an iron pin in the former line Mathieson Alkali Works, a corner to property retained by the parties of first part, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 63° 50' 422.75 feet to an iron pin a corner to Williams (formerly Walker); thence with Williams line, S 10° 21' W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79° 39' E 283.00 feet with the center line of the alley to an iron pin corner to Arnold (formerly Chapman); thence with the line of Arnold, S 08° 32' W 61.66 feet to an iron pin; thence S 11° 09' E 676.63 feet to an iron pin, a corner of Arnold and Hicks; thence for a division line between Hicks, Taylor and the property hereby conveyed, N 57° 15' W 1496.88 feet to an iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson Alkali Works, N 45° 00' E 780.06, plus or minus, feet to the point of beginning, and being a portion of the property conveyed unto William C. Terry, one of the parties of the first part, by deed of the Olin Corporation, dated January 26, 1970, and of record in the Clerk's Office of the Circuit Court of Smyth County, in Deed Book 236, Page 360.

GWYN. TATE & TATE
ATTORNEYS AT LAW
MARION, VIRGINIA

This conveyance is made subject to all restrictions, reservations, conditions and easements of record concerning this property, and particularly

BOOK 370 PAGE 797

to those set forth in Deed Book 236, Page 360. It is further understood that the description hereof is to the aforesaid 10 foot alley. The use thereof is reserved for the parties of the first part, their successors and heirs, and for any other persons having a prior use to said alley.

Taxes for the year 1987 to be pro-rated and paid by the parties of the second part. Possession to be given upon delivery of the deed.

WITNESS the following signatures and seals:

William C. Terry (SEAL)
William C. Terry

Delores S. Terry (SEAL)
Delores S. Terry

STATE OF VIRGINIA, AT LARGE:

The foregoing instrument was acknowledged before me in

Salisbury, Virginia, this 1 day of April, 1987 by
William C. Terry and Delores S. Terry.

My Commission expires July 24 - 87.

[Signature]
NOTARY PUBLIC

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE
CIRCUIT COURT OF SMYTH COUNTY Apr. 7 1987.
This deed was this day presented in said office
and with certificate thereto annexed admitted to
record at 4:45 o'clock P.M. after payment of
tax imposed by Sec. 58-54.1.

ST 22 OCT 74 TIF 1 CE CF 10 038 75 220 7.50

Deed No. 928

TESTE: Jimmy L. Warren, Clerk
BY: [Signature] D.C.

THIS DEED, made this 26th day of January, 1970, by
and between OLIN CORPORATION (formerly Olin Mathieson Chemical
Corporation), grantor and first party, hereinafter called Olin,
and WILLIAM C. TERRY, grantee and second party, hereinafter
called Terry, and SMYTH COUNTY PUBLIC SERVICE AUTHORITY,
third party, hereinafter called the Public Service Authority;

W I T N E S S E T H:

That for and in consideration of EIGHT THOUSAND
NINE HUNDRED NINETY-SEVEN and NO/100 (\$8,997.00) DOLLARS,
cash in hand paid, receipt of which is hereby acknowledged,
Olin does hereby grant, bargain, sell and convey, upon the
terms and conditions hereinafter specified, and subject to
the exceptions and reservations hereinafter set out, to
Terry, with covenants of general warranty, that certain
tract or parcel of land lying and being on Virginia State
Secondary Highway No. 746, near the Old Rich Valley Quarry,
in Saltville Magisterial District of Smyth County, Virginia,
and particularly bounded and described as follows, to-wit:

BEGINNING at a cross in a stone
monument corner to land of Sallie Terry and
to other land of Olin; thence leaving other
land of Olin and with three lines of Terry
S 16° 02' E 142.63 feet to an iron pin;
S 35° 37' E 610.99 feet to an iron pin; S
6° 38' W 356.23 feet to an iron pin in the
center line of Virginia State Secondary
Highway No. 746 corner to Edward Chapman;

Approved as to Engineering

Chief Engineer

3-31-70

Mailed to:
Wm. C. Stewart
P.O. Box 759
Abingdon, Va. 24210
5/11/70

thence leaving Terry and with the center line of the Road and with a line of Chapman N 80° 41' W 397.5 feet to a point corner to J. S. Walker; thence leaving Chapman and with Walker continuing on the same bearing and with the center line of the Road 209.52 feet to a point corner to Walker; thence with two lines of Walker, continuing with the center line of the Road, N 34° 35' E 17.50 feet to an iron pin; N 63° 50' W 80.00 feet to a point corner to Walker; thence leaving the Road and with two lines of Walker S 10° 21' W 408.28 feet to an iron pin in the center line of a 10-foot alley; S 79° 39' E 283.0 feet with the center line of the alley to an iron pin corner to Edward Chapman; thence with two lines of Chapman S 08° 32' W 61.66 feet to an iron pin; S 11° 09' E 676.63 feet to an iron pin corner to Chapman and W. T. Hicks; thence leaving Chapman and with one line of Hicks and with the existing fence N 57° 15' W 891.68 feet to a point, corner to J. M. Taylor Estate; thence leaving Hicks and with one line of the Taylor Estate, continuing on the same bearing, and with the fence 605.2 feet to an iron pin in a line of other land of Olin; thence leaving the Taylor Estate and with one line of other land of Olin and with the fence N 45° 00' E 780.06 feet to an iron pin; thence leaving the fence and with one line of other land of Olin N 46° 28' E 948.41 feet to the point of BEGINNING, containing 30.23 acres, more or less.

Part of the tract of land hereinabove described and hereby conveyed is the same land which was conveyed to The Mathieson Alkali Works (predecessor corporation to Olin) by R. L. Brown and wife by deed dated October 9, 1925, of record in the Clerk's Office of the Circuit Court of Smyth County, Virginia, in Deed Book No. 54, at page 223, and the residue is the same land which was conveyed to said The Mathieson Alkali Works by

Nannie K. Shreeves et al by deed dated September 5, 1925, of record in said Clerk's Office in Deed Book No. 54, at page 224, to which deeds, so of record, reference is here made.

This conveyance is made subject to the easement of the above-mentioned Virginia State Secondary Highway No. 746 as presently located and fenced across a part of the land hereby conveyed, and is further made subject to such rights of passage, if any, as any third parties may now possess in and to a certain unmarked 10-foot alley mentioned in the deeds contained in Olin's chain of title and set out in the description hereinabove as running eastwardly across the land hereby conveyed to an iron pin at the above-mentioned corner of Edward Chapman with D. R. Walker.

It is expressly understood and agreed that Olin does hereby except and reserve to itself, its successors and assigns, all minerals, salt, brine, limestone, plaster, oil and gas in, under or upon the land hereby conveyed, together with all reasonable rights of ingress and egress, on, under, over and through said land for the purpose of exploring for, mining, developing and removing said minerals, salt, brine, limestone, plaster, oil and gas, together with such other rights and easements as are necessary or convenient for the enjoyment of the property and rights so excepted and reserved and Olin, its successors and assigns, shall also have the right to transport on, under, over and through the land hereby conveyed any minerals, salt, brine, limestone, plaster, oil, gas and stone which Olin, its successors and assigns, may mine or take from other lands belonging to Olin or in which it may have an interest, or which it may lease.

It is further expressly understood and agreed that Olin does hereby except and reserve to itself, its successors and assigns, and they shall have the right, privilege and authority to continue, maintain and operate any pipe line or lines now laid under or through said land, and to lay, maintain and operate on, under, over and through said land, any additional pipe lines it or they may desire for conveying oil, gas, water, brine or any other liquids used by Olin, its successors and assigns, in connection with its or their operations, or for any other of its or their purposes; also the right, privilege and authority to erect, string, continue, maintain and operate any overhead tramways, cables, wires, poles and other appliances for overhead transport, electrical transmission and telephone communication or other uses and purposes on, over and through said land, together with all reasonable rights of ingress and egress on, under, over and through the said land for the purpose of laying, placing, erecting, repairing, maintaining and operating said pipe lines, overhead tramways, cables, wires, poles and other appliances.

It is further expressly understood and agreed that Olin does hereby except and reserve for the benefit of the Public Service Authority, its successors and assigns, and this conveyance is subject to, the right, privilege and authority of the Public Service Authority, its successors and assigns, to continue, maintain and operate any water or sewer pipe line or lines now laid on, under, over and through said land and Olin does hereby grant to the Public Service Authority, the aforesaid right, privilege and authority together with the right, privilege and authority to lay, maintain and operate on, under, over and through said land, any such additional pipe line or lines as it

may desire for conveying water or sewage, together with all reasonable rights of ingress and egress under, on, over and through the said land for the purpose of laying, maintaining, replacing and operating said pipe line or lines.

Olin or the Public Service Authority, whichever shall have caused the damage, its successors and assigns, shall compensate Terry, his heirs and vendees, for any actual damage done to the surface of the land hereby conveyed, and to any improvements thereon, by the exercise of the said rights reserved by or for or granted to them, respectively.

If Olin or the Public Service Authority, whichever shall have caused the damage, its successors and assigns, and Terry, his heirs and vendees, cannot agree upon the amount of such damage, then the dispute shall be submitted to two arbitrators, who shall be chosen, one by Olin or the Public Service Authority, whichever shall have caused the damage, or its successors and assigns, and the other arbitrator shall be chosen by Terry, his heirs and vendees, and if the two such arbitrators are unable to agree, they shall select a third to whom the dispute shall be submitted and whose decision shall be final and binding upon the parties.

IN TESTIMONY WHEREOF, Olin has caused its corporate name to be signed hereto by R. N. Williams, a Vice-President, and its seal to be affixed, attested by R. C. Burroughs, an Assistant Secretary, this the day and year first above written.

OLIN CORPORATION

By

R. N. Williams

Vice-President & General Manager
Chemicals Division

Attest:

R. C. Burroughs
Assistant Secretary



CRH
9/21/70

STATE OF CONNECTICUT)

) To-wit:

COUNTY OF FAIRFIELD)

I, Diane E. Walsh, a Notary Public
 in and for the County aforesaid, in the State of Connecticut,
 do hereby certify that R. N. Williams, Vice-
 President, and R. C. Burroughs, an Assistant
 Secretary, of Olin Corporation, whose names as such are signed
 to the foregoing deed bearing date on the 26th day of January,
 1970, have this day acknowledged the same before me in my
 County aforesaid.

My term of office expires March 31, 1974.

Given under my hand and notarial seal this 13th
 day of April, 19 70.

Diane E. Walsh
 Notary Public

DIANE E. WALSH
 NOTARY PUBLIC
 MY COMMISSION EXPIRES MAR. 31, 1974

VIRGINIA: In the Clerk's Office of the Circuit Court of Smyth County, this 23 day of April,
 19 70, the foregoing writing was presented and with the certificate annexed, admitted to
 record at 10⁰⁰ o'clock A M. after payment of \$ 9.00 tax imposed by Sec. 58-54 (b).

Teste: Robert E. Lumin, Clerk

When recorded, return to:
The First Bank and Trust Company
Attn: Mortgage Division
191 Bristol East Rd, Ste 201
Bristol, VA 24202
866-849-2323

This document was prepared by:
The First Bank and Trust Company
191 Bristol East Rd, Ste 201
Bristol, VA 24202
276-644-9900

APN #: 41-A-54 & 41-A 55I

Escrow No.: 052020292
LOAN #: 800208010855

AMOUNT OF CONSIDERATION: \$213,700.00

[Space Above This Line For Recording Data]

DEED OF TRUST

The following information, as further defined below, is provided in accordance with Virginia law:

This Deed of Trust is given by JONATHAN CHAD LITTLE, SINGLE MAN,
A/K/A JONATHAN C. LITTLE

as Borrower (trustor), to William H. HAYTER and Benjamin Andrew PUCKETT,

as Trustee, for the benefit of The First Bank and Trust Company ,

as beneficiary.

DEFINITIONS

Words used in multiple sections of this document are defined below and other words are defined in Sections 3, 11, 13, 18, 20 and 21. Certain rules regarding the usage of words used in this document are also provided in Section 16.

(A) "Security Instrument" means this document, which is dated May 29, 2020, together with all Riders to this document.

(B) "Borrower" is JONATHAN CHAD LITTLE, SINGLE MAN.

Borrower is the trustor under this Security Instrument.

(C) "Lender" is The First Bank and Trust Company .

Lender is a Banking Corporation,

organized and

existing under the laws of Virginia.

Lender's address is

191 Bristol East Rd, Ste 201, Bristol, VA 24202.

Lender is the beneficiary under this Security Instrument.

(D) "Trustee" is William H. HAYTER and Benjamin Andrew PUCKETT.

Trustee (whether one or more persons) is a Virginia resident and/or a United States- or Virginia-chartered corporation whose principal office is located in Virginia. Trustee's address is 18528 Lee Hwy., POB 1000, Abingdon, VA 24212 and 191 Bristol East Rd. Ste. 201, Bristol, VA 24202.

(E) "Note" means the promissory note signed by Borrower and dated May 29, 2020.

The Note states that Borrower owes Lender TWO HUNDRED THIRTEEN THOUSAND SEVEN

HUNDRED AND NO/100***** Dollars (U.S. \$213,700.00) plus interest. Borrower has promised to pay this debt in regular Periodic Payments and to pay the debt in full not later than June 1, 2035.

(F) "Property" means the property that is described below under the heading "Transfer of Rights in the Property."

(G) "Loan" means the debt evidenced by the Note, plus interest, any prepayment charges and late charges due under the Note, and all sums due under this Security Instrument, plus interest.

(H) "Riders" means all Riders to this Security Instrument that are executed by Borrower. The following Riders are to be executed by Borrower [check box as applicable]:

- | | | |
|---|---|--|
| ☐ Adjustable Rate Rider | ☐ Condominium Rider | ☐ Second Home Rider |
| ☐ Balloon Rider | ☐ Planned Unit Development Rider | ☐ 1-4 Family Rider |
| ☐ Biweekly Payment Rider | ☐ V.A. Rider | |
| ☐ Other(s) [specify] | | |

(I) "Applicable Law" means all controlling applicable federal, state and local statutes, regulations, ordinances and administrative rules and orders (that have the effect of law) as well as all applicable final, non-appealable judicial opinions.

(J) "Community Association Dues, Fees, and Assessments" means all dues, fees, assessments and other charges that are imposed on Borrower or the Property by a condominium association, homeowners association or similar organization.

(K) "Electronic Funds Transfer" means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated through an electronic terminal, telephonic instrument, computer, or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account. Such term includes, but is not limited to, point-of-sale transfers, automated teller machine transactions, transfers initiated by telephone, wire transfers, and automated clearinghouse transfers.

(L) "Escrow Items" means those items that are described in Section 3.

(M) "Miscellaneous Proceeds" means any compensation, settlement, award of damages, or proceeds paid by any third party (other than insurance proceeds paid under the coverages described in Section 5) for: (i) damage to, or destruction of, the Property; (ii) condemnation or other taking of all or any part of the Property; (iii) conveyance in lieu of condemnation; or (iv) misrepresentations of, or omissions as to, the value and/or condition of the Property.

(N) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or default on, the Loan.

(O) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3 of this Security Instrument.

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(P) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. §2601 et seq.) and its implementing regulation, Regulation X (12 C.F.R. Part 1024), as they might be amended from time to time, or any additional or successor legislation or regulation that governs the same subject matter. As used in this Security Instrument, "RESPA" refers to all requirements and restrictions that are imposed in regard to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.

(Q) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

TRANSFER OF RIGHTS IN THE PROPERTY

This Security Instrument secures to Lender: (i) the repayment of the Loan, and all renewals, extensions and modifications of the Note; and (ii) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower irrevocably grants and conveys to Trustee, in trust, with power of sale, the following described property located in the

County
of Smyth

[Type of Recording Jurisdiction]

[Name of Recording Jurisdiction]:

See attached Exhibit/Schedule A
APN #: 41-A-5A & 41-A-551

which currently has the address of 108 Arnold Hill Lane, Saltville,

[Street] [City/County]

Virginia 24370 ("Property Address");
[Zip Code]

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property."

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal, Interest, Escrow Items, Prepayment Charges, and Late Charges.

Borrower shall pay when due the principal of, and interest on, the debt evidenced by the Note and any prepayment charges and late charges due under the Note. Borrower shall also pay funds for Escrow Items pursuant to Section 3. Payments due under the Note and this Security Instrument shall be made in U.S. currency. However, if any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality, or entity; or (d) Electronic Funds Transfer.

Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in Section 15. Lender may return any payment or partial payment if the payment or partial payments are insufficient

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to bring the Loan current. Lender may accept any payment or partial payment insufficient to bring the Loan current, without waiver of any rights hereunder or prejudice to its rights to refuse such payment or partial payments in the future, but Lender is not obligated to apply such payments at the time such payments are accepted. If each Periodic Payment is applied as of its scheduled due date, then Lender need not pay interest on unapplied funds. Lender may hold such unapplied funds until Borrower makes payment to bring the Loan current. If Borrower does not do so within a reasonable period of time, Lender shall either apply such funds or return them to Borrower. If not applied earlier, such funds will be applied to the outstanding principal balance under the Note immediately prior to foreclosure. No offset or claim which Borrower might have now or in the future against Lender shall relieve Borrower from making payments due under the Note and this Security Instrument or performing the covenants and agreements secured by this Security Instrument.

2. Application of Payments or Proceeds. Except as otherwise described in this Section 2, all payments accepted and applied by Lender shall be applied in the following order of priority: (a) interest due under the Note; (b) principal due under the Note; (c) amounts due under Section 3. Such payments shall be applied to each Periodic Payment in the order in which it became due. Any remaining amounts shall be applied first to late charges, second to any other amounts due under this Security Instrument, and then to reduce the principal balance of the Note.

If Lender receives a payment from Borrower for a delinquent Periodic Payment which includes a sufficient amount to pay any late charge due, the payment may be applied to the delinquent payment and the late charge. If more than one Periodic Payment is outstanding, Lender may apply any payment received from Borrower to the repayment of the Periodic Payments if, and to the extent that, each payment can be paid in full. To the extent that any excess exists after the payment is applied to the full payment of one or more Periodic Payments, such excess may be applied to any late charges due. Voluntary prepayments shall be applied first to any prepayment charges and then as described in the Note.

Any application of payments, insurance proceeds, or Miscellaneous Proceeds to principal due under the Note shall not extend or postpone the due date, or change the amount, of the Periodic Payments.

3. Funds for Escrow Items. Borrower shall pay to Lender on the day Periodic Payments are due under the Note, until the Note is paid in full, a sum (the "Funds") to provide for payment of amounts due for: (a) taxes and assessments and other items which can attain priority over this Security Instrument as a lien or encumbrance on the Property; (b) leasehold payments or ground rents on the Property, if any; (c) premiums for any and all insurance required by Lender under Section 5; and (d) Mortgage Insurance premiums, if any, or any sums payable by Borrower to Lender in lieu of the payment of Mortgage Insurance premiums in accordance with the provisions of Section 10. These items are called "Escrow Items." At origination or at any time during the term of the Loan, Lender may require that Community Association Dues, Fees, and Assessments, if any, be escrowed by Borrower, and such dues, fees and assessments shall be an Escrow Item. Borrower shall promptly furnish to Lender all notices of amounts to be paid under this Section. Borrower shall pay Lender the Funds for Escrow Items unless Lender waives Borrower's obligation to pay the Funds for any or all Escrow Items. Lender may waive Borrower's obligation to pay to Lender Funds for any or all Escrow Items at any time. Any such waiver may only be in writing. In the event of such waiver, Borrower shall pay directly, when and where payable, the amounts due for any Escrow Items for which payment of Funds has been waived by Lender and, if Lender requires, shall furnish to Lender receipts evidencing such payment within such time period as Lender may require. Borrower's obligation to make such payments and to provide receipts shall for all purposes be deemed to be a covenant and agreement contained in this Security Instrument, as the phrase "covenant and agreement" is used in Section 9. If Borrower is obligated to pay Escrow Items directly, pursuant to a waiver, and Borrower fails to pay the amount due for an Escrow Item, Lender may exercise its rights under Section 9 and pay such amount and Borrower shall then be obligated under Section 9 to repay to Lender any such amount. Lender may revoke the waiver as to any or all Escrow Items at any time by a notice given in accordance with Section 15 and, upon such revocation, Borrower shall pay to Lender all Funds, and in such amounts, that are then required under this Section 3.

Lender may, at any time, collect and hold Funds in an amount (a) sufficient to permit Lender to apply the Funds at the time specified under RESPA, and (b) not to exceed the maximum amount a lender can require under RESPA. Lender shall estimate the amount of Funds due on the basis of current data and reasonable estimates of expenditures of future Escrow Items or otherwise in accordance with Applicable Law.

The Funds shall be held in an institution whose deposits are insured by a federal agency, instrumentality, or entity (including Lender, if Lender is an institution whose deposits are so insured) or in any Federal Home Loan Bank. Lender shall apply the Funds to pay the Escrow Items no later than the time specified under RESPA. Lender shall not charge Borrower for holding and applying the Funds, annually analyzing the escrow account, or verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless an agreement is made in writing or Applicable Law requires interest to be paid on the Funds, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Borrower and Lender can agree in writing, however, that interest shall be paid on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

If there is a surplus of Funds held in escrow, as defined under RESPA, Lender shall account to Borrower for the excess funds in accordance with RESPA. If there is a shortage of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to

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Lender the amount necessary to make up the shortage in accordance with RESPA, but in no more than 12 monthly payments. If there is a deficiency of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the deficiency in accordance with RESPA, but in no more than 12 monthly payments.

Upon payment in full of all sums secured by this Security Instrument, Lender shall promptly refund to Borrower any Funds held by Lender.

4. Charges; Liens. Borrower shall pay all taxes, assessments, charges, fines, and impositions attributable to the Property which can attain priority over this Security Instrument, leasehold payments or ground rents on the Property, if any, and Community Association Dues, Fees, and Assessments, if any. To the extent that these items are Escrow Items, Borrower shall pay them in the manner provided in Section 3.

Borrower shall promptly discharge any lien which has priority over this Security Instrument unless Borrower: (a) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender, but only so long as Borrower is performing such agreement; (b) contests the lien in good faith by, or defends against enforcement of the lien in, legal proceedings which in Lender's opinion operate to prevent the enforcement of the lien while those proceedings are pending, but only until such proceedings are concluded; or (c) secures from the holder of the lien an agreement satisfactory to Lender subordinating the lien to this Security Instrument. If Lender determines that any part of the Property is subject to a lien which can attain priority over this Security Instrument, Lender may give Borrower a notice identifying the lien. Within 10 days of the date on which that notice is given, Borrower shall satisfy the lien or take one or more of the actions set forth above in this Section 4.

Lender may require Borrower to pay a one-time charge for a real estate tax verification and/or reporting service used by Lender in connection with this Loan.

5. Property Insurance. Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and any other hazards including, but not limited to, earthquakes and floods, for which Lender requires insurance. This insurance shall be maintained in the amounts (including deductible levels) and for the periods that Lender requires. What Lender requires pursuant to the preceding sentences can change during the term of the Loan. The insurance carrier providing the insurance shall be chosen by Borrower subject to Lender's right to disapprove Borrower's choice, which right shall not be exercised unreasonably. Lender may require Borrower to pay, in connection with this Loan, either: (a) a one-time charge for flood zone determination, certification and tracking services; or (b) a one-time charge for flood zone determination and certification services and subsequent charges each time remappings or similar changes occur which reasonably might affect such determination or certification. Borrower shall also be responsible for the payment of any fees imposed by the Federal Emergency Management Agency in connection with the review of any flood zone determination resulting from an objection by Borrower.

If Borrower fails to maintain any of the coverages described above, Lender may obtain insurance coverage, at Lender's option and Borrower's expense. Lender is under no obligation to purchase any particular type or amount of coverage. Therefore, such coverage shall cover Lender, but might or might not protect Borrower, Borrower's equity in the Property, or the contents of the Property, against any risk, hazard or liability and might provide greater or lesser coverage than was previously in effect. Borrower acknowledges that the cost of the insurance coverage so obtained might significantly exceed the cost of insurance that Borrower could have obtained. Any amounts disbursed by Lender under this Section 5 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

All insurance policies required by Lender and renewals of such policies shall be subject to Lender's right to disapprove such policies, shall include a standard mortgage clause, and shall name Lender as mortgagee and/or as an additional loss payee. Lender shall have the right to hold the policies and renewal certificates. If Lender requires, Borrower shall promptly give to Lender all receipts of paid premiums and renewal notices. If Borrower obtains any form of insurance coverage, not otherwise required by Lender, for damage to, or destruction of, the Property, such policy shall include a standard mortgage clause and shall name Lender as mortgagee and/or as an additional loss payee.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower. Unless Lender and Borrower otherwise agree in writing, any insurance proceeds, whether or not the underlying insurance was required by Lender, shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such insurance proceeds, Lender shall not be required to pay Borrower any interest or earnings on such proceeds. Fees for public adjusters, or other third parties, retained by Borrower shall not be paid out of the insurance proceeds and shall be the sole obligation of Borrower. If the restoration or repair is not economically feasible or Lender's security would be lessened, the insurance proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds shall be applied in the order provided for in Section 2.

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If Borrower abandons the Property, Lender may file, negotiate and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 22 or otherwise, Borrower hereby assigns to Lender (a) Borrower's rights to any insurance proceeds in an amount not to exceed the amounts unpaid under the Note or this Security Instrument, and (b) any other of Borrower's rights (other than the right to any refund of unearned premiums paid by Borrower) under all insurance policies covering the Property, insofar as such rights are applicable to the coverage of the Property. Lender may use the insurance proceeds either to repair or restore the Property or to pay amounts unpaid under the Note or this Security Instrument, whether or not then due.

6. Occupancy. Borrower shall occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution of this Security Instrument and shall continue to occupy the Property as Borrower's principal residence for at least one year after the date of occupancy, unless Lender otherwise agrees in writing, which consent shall not be unreasonably withheld, or unless extenuating circumstances exist which are beyond Borrower's control.

7. Preservation, Maintenance and Protection of the Property; Inspections. Borrower shall not destroy, damage or impair the Property, allow the Property to deteriorate or commit waste on the Property. Whether or not Borrower is residing in the Property, Borrower shall maintain the Property in order to prevent the Property from deteriorating or decreasing in value due to its condition. Unless it is determined pursuant to Section 5 that repair or restoration is not economically feasible, Borrower shall promptly repair the Property if damaged to avoid further deterioration or damage. If insurance or condemnation proceeds are paid in connection with damage to, or the taking of, the Property, Borrower shall be responsible for repairing or restoring the Property only if Lender has released proceeds for such purposes. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. If the insurance or condemnation proceeds are not sufficient to repair or restore the Property, Borrower is not relieved of Borrower's obligation for the completion of such repair or restoration.

Lender or its agent may make reasonable entries upon and inspections of the Property. If it has reasonable cause, Lender may inspect the interior of the improvements on the Property. Lender shall give Borrower notice at the time of or prior to such an interior inspection specifying such reasonable cause.

8. Borrower's Loan Application. Borrower shall be in default if, during the Loan application process, Borrower or any persons or entities acting at the direction of Borrower or with Borrower's knowledge or consent gave materially false, misleading, or inaccurate information or statements to Lender (or failed to provide Lender with material information) in connection with the Loan. Material representations include, but are not limited to, representations concerning Borrower's occupancy of the Property as Borrower's principal residence.

9. Protection of Lender's Interest in the Property and Rights Under this Security Instrument. If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender's interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then Lender may do and pay for whatever is reasonable or appropriate to protect Lender's interest in the Property and rights under this Security Instrument, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. Lender's actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys' fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, entering the Property to make repairs, change locks, replace or board up doors and windows, drain water from pipes, eliminate building or other code violations or dangerous conditions, and have utilities turned on or off. Although Lender may take action under this Section 9, Lender does not have to do so and is not under any duty or obligation to do so. It is agreed that Lender incurs no liability for not taking any or all actions authorized under this Section 9.

Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

If this Security Instrument is on a leasehold, Borrower shall comply with all the provisions of the lease. Borrower shall not surrender the leasehold estate and interests herein conveyed or terminate or cancel the ground lease. Borrower shall not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing.

10. Mortgage Insurance. If Lender required Mortgage Insurance as a condition of making the Loan, Borrower shall pay the premiums required to maintain the Mortgage Insurance in effect. If, for any reason, the Mortgage Insurance coverage required by Lender ceases to be available from the mortgage insurer that previously provided such insurance and Borrower was required to make separately designated payments toward the premiums for Mortgage Insurance, Borrower shall pay the premiums required to obtain coverage substantially equivalent to the Mortgage Insurance previously in effect, at a cost substantially

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equivalent to the cost to Borrower of the Mortgage Insurance previously in effect, from an alternate mortgage insurer selected by Lender. If substantially equivalent Mortgage Insurance coverage is not available, Borrower shall continue to pay to Lender the amount of the separately designated payments that were due when the insurance coverage ceased to be in effect. Lender will accept, use and retain these payments as a non-refundable loss reserve in lieu of Mortgage Insurance. Such loss reserve shall be non-refundable, notwithstanding the fact that the Loan is ultimately paid in full, and Lender shall not be required to pay Borrower any interest or earnings on such loss reserve. Lender can no longer require loss reserve payments if Mortgage Insurance coverage (in the amount and for the period that Lender requires) provided by an insurer selected by Lender again becomes available, is obtained, and Lender requires separately designated payments toward the premiums for Mortgage Insurance. If Lender required Mortgage Insurance as a condition of making the Loan and Borrower was required to make separately designated payments toward the premiums for Mortgage Insurance, Borrower shall pay the premiums required to maintain Mortgage Insurance in effect, or to provide a non-refundable loss reserve, until Lender's requirement for Mortgage Insurance ends in accordance with any written agreement between Borrower and Lender providing for such termination or until termination is required by Applicable Law. Nothing in this Section 10 affects Borrower's obligation to pay interest at the rate provided in the Note.

Mortgage Insurance reimburses Lender (or any entity that purchases the Note) for certain losses it may incur if Borrower does not repay the Loan as agreed. Borrower is not a party to the Mortgage Insurance.

Mortgage insurers evaluate their total risk on all such insurance in force from time to time, and may enter into agreements with other parties that share or modify their risk, or reduce losses. These agreements are on terms and conditions that are satisfactory to the mortgage insurer and the other party (or parties) to these agreements. These agreements may require the mortgage insurer to make payments using any source of funds that the mortgage insurer may have available (which may include funds obtained from Mortgage Insurance premiums).

As a result of these agreements, Lender, any purchaser of the Note, another insurer, any reinsurer, any other entity, or any affiliate of any of the foregoing, may receive (directly or indirectly) amounts that derive from (or might be characterized as) a portion of Borrower's payments for Mortgage Insurance, in exchange for sharing or modifying the mortgage insurer's risk, or reducing losses. If such agreement provides that an affiliate of Lender takes a share of the insurer's risk in exchange for a share of the premiums paid to the insurer, the arrangement is often termed "captive reinsurance." Further:

(a) Any such agreements will not affect the amounts that Borrower has agreed to pay for Mortgage Insurance, or any other terms of the Loan. Such agreements will not increase the amount Borrower will owe for Mortgage Insurance, and they will not entitle Borrower to any refund.

(b) Any such agreements will not affect the rights Borrower has - if any - with respect to the Mortgage Insurance under the Homeowners Protection Act of 1998 or any other law. These rights may include the right to receive certain disclosures, to request and obtain cancellation of the Mortgage Insurance, to have the Mortgage Insurance terminated automatically, and/or to receive a refund of any Mortgage Insurance premiums that were unearned at the time of such cancellation or termination.

11. Assignment of Miscellaneous Proceeds; Forfeiture. All Miscellaneous Proceeds are hereby assigned to and shall be paid to Lender.

If the Property is damaged, such Miscellaneous Proceeds shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such Miscellaneous Proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may pay for the repairs and restoration in a single disbursement or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such Miscellaneous Proceeds, Lender shall not be required to pay Borrower any interest or earnings on such Miscellaneous Proceeds. If the restoration or repair is not economically feasible or Lender's security would be lessened, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such Miscellaneous Proceeds shall be applied in the order provided for in Section 2.

In the event of a total taking, destruction, or loss in value of the Property, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the sums secured by this Security Instrument shall be reduced by the amount of the Miscellaneous Proceeds multiplied by the following fraction: (a) the total amount of the sums secured immediately before the partial taking, destruction, or loss in value divided by (b) the fair market value of the Property immediately before the partial taking, destruction, or loss in value. Any balance shall be paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is less than the amount of the sums secured immediately before the partial taking, destruction, or loss in value, unless Borrower

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and Lender otherwise agree in writing, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument whether or not the sums are then due.

If the Property is abandoned by Borrower, or if, after notice by Lender to Borrower that the Opposing Party (as defined in the next sentence) offers to make an award to settle a claim for damages, Borrower fails to respond to Lender within 30 days after the date the notice is given, Lender is authorized to collect and apply the Miscellaneous Proceeds either to restoration or repair of the Property or to the sums secured by this Security Instrument, whether or not then due. "Opposing Party" means the third party that owes Borrower Miscellaneous Proceeds or the party against whom Borrower has a right of action in regard to Miscellaneous Proceeds.

Borrower shall be in default if any action or proceeding, whether civil or criminal, is begun that, in Lender's judgment, could result in forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower can cure such a default and, if acceleration has occurred, reinstate as provided in Section 19, by causing the action or proceeding to be dismissed with a ruling that, in Lender's judgment, precludes forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. The proceeds of any award or claim for damages that are attributable to the impairment of Lender's interest in the Property are hereby assigned and shall be paid to Lender.

All Miscellaneous Proceeds that are not applied to restoration or repair of the Property shall be applied in the order provided for in Section 2.

12. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Security Instrument granted by Lender to Borrower or any Successor in Interest of Borrower shall not operate to release the liability of Borrower or any Successors in Interest of Borrower. Lender shall not be required to commence proceedings against any Successor in Interest of Borrower or to refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities or Successors in Interest of Borrower or in amounts less than the amount then due, shall not be a waiver of or preclude the exercise of any right or remedy.

13. Joint and Several Liability; Co-signers; Successors and Assigns Bound. Borrower covenants and agrees that Borrower's obligations and liability shall be joint and several. However, any Borrower who co-signs this Security Instrument but does not execute the Note (a "co-signer"): (a) is co-signing this Security Instrument only to mortgage, grant and convey the co-signer's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower can agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without the co-signer's consent.

Subject to the provisions of Section 18, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, shall obtain all of Borrower's rights and benefits under this Security Instrument. Borrower shall not be released from Borrower's obligations and liability under this Security Instrument unless Lender agrees to such release in writing. The covenants and agreements of this Security Instrument shall bind (except as provided in Section 20) and benefit the successors and assigns of Lender.

14. Loan Charges. Lender may charge Borrower fees for services performed in connection with Borrower's default, for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument, including, but not limited to, attorneys' fees, property inspection and valuation fees. In regard to any other fees, the absence of express authority in this Security Instrument to charge a specific fee to Borrower shall not be construed as a prohibition on the charging of such fee. Lender may not charge fees that are expressly prohibited by this Security Instrument or by Applicable Law.

If the Loan is subject to a law which sets maximum loan charges, and that law is finally interpreted so that the interest or other loan charges collected or to be collected in connection with the Loan exceed the permitted limits, then: (a) any such loan charge shall be reduced by the amount necessary to reduce the charge to the permitted limit; and (b) any sums already collected from Borrower which exceeded permitted limits will be refunded to Borrower. Lender may choose to make this refund by reducing the principal owed under the Note or by making a direct payment to Borrower. If a refund reduces principal, the reduction will be treated as a partial prepayment without any prepayment charge (whether or not a prepayment charge is provided for under the Note). Borrower's acceptance of any such refund made by direct payment to Borrower will constitute a waiver of any right of action Borrower might have arising out of such overcharge.

15. Notices. All notices given by Borrower or Lender in connection with this Security Instrument must be in writing. Any notice to Borrower in connection with this Security Instrument shall be deemed to have been given to Borrower when mailed by first class mail or when actually delivered to Borrower's notice address if sent by other means. Notice to any one Borrower shall constitute notice to all Borrowers unless Applicable Law expressly requires otherwise. The notice address shall be the Property Address unless Borrower has designated a substitute notice address by notice to Lender. Borrower shall promptly notify Lender of Borrower's change of address. If Lender specifies a procedure for reporting Borrower's change of address, then Borrower shall only report a change of address through that specified procedure. There may be only one designated notice address under this Security

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Instrument at any one time. Any notice to Lender shall be given by delivering it or by mailing it by first class mail to Lender's address stated herein unless Lender has designated another address by notice to Borrower. Any notice in connection with this Security Instrument shall not be deemed to have been given to Lender until actually received by Lender. If any notice required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

16. Governing Law; Severability; Rules of Construction. This Security Instrument shall be governed by federal law and the law of the jurisdiction in which the Property is located. All rights and obligations contained in this Security Instrument are subject to any requirements and limitations of Applicable Law. Applicable Law might explicitly or implicitly allow the parties to agree by contract or it might be silent, but such silence shall not be construed as a prohibition against agreement by contract. In the event that any provision or clause of this Security Instrument or the Note conflicts with Applicable Law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision.

As used in this Security Instrument: (a) words of the masculine gender shall mean and include corresponding neuter words or words of the feminine gender; (b) words in the singular shall mean and include the plural and vice versa; and (c) the word "may" gives sole discretion without any obligation to take any action.

17. Borrower's Copy. Borrower shall be given one copy of the Note and of this Security Instrument.

18. Transfer of the Property or a Beneficial Interest in Borrower. As used in this Section 18, "Interest in the Property" means any legal or beneficial interest in the Property, including, but not limited to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract or escrow agreement, the intent of which is the transfer of title by Borrower at a future date to a purchaser.

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 15 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

19. Borrower's Right to Reinstate After Acceleration. If Borrower meets certain conditions, Borrower shall have the right to have enforcement of this Security Instrument discontinued at any time prior to the earliest of: (a) five days before sale of the Property pursuant to any power of sale contained in this Security Instrument; (b) such other period as Applicable Law might specify for the termination of Borrower's right to reinstate; or (c) entry of a judgment enforcing this Security Instrument. Those conditions are that Borrower: (a) pays Lender all sums which then would be due under this Security Instrument and the Note as if no acceleration had occurred; (b) cures any default of any other covenants or agreements; (c) pays all expenses incurred in enforcing this Security Instrument, including, but not limited to, reasonable attorneys' fees, property inspection and valuation fees, and other fees incurred for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument; and (d) takes such action as Lender may reasonably require to assure that Lender's interest in the Property and rights under this Security Instrument, and Borrower's obligation to pay the sums secured by this Security Instrument, shall continue unchanged. Lender may require that Borrower pay such reinstatement sums and expenses in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality or entity; or (d) Electronic Funds Transfer. Upon reinstatement by Borrower, this Security Instrument and obligations secured hereby shall remain fully effective as if no acceleration had occurred. However, this right to reinstate shall not apply in the case of acceleration under Section 18.

20. Sale of Note; Change of Loan Servicer; Notice of Grievance. The Note or a partial interest in the Note (together with this Security Instrument) can be sold one or more times without prior notice to Borrower. A sale might result in a change in the entity (known as the "Loan Servicer") that collects Periodic Payments due under the Note and this Security Instrument and performs other mortgage loan servicing obligations under the Note, this Security Instrument, and Applicable Law. There also might be one or more changes of the Loan Servicer unrelated to a sale of the Note. If there is a change of the Loan Servicer, Borrower will be given written notice of the change which will state the name and address of the new Loan Servicer, the address to which payments should be made and any other information RESPA requires in connection with a notice of transfer of servicing. If the Note is sold and thereafter the Loan is serviced by a Loan Servicer other than the purchaser of the Note, the mortgage loan servicing obligations to Borrower will remain with the Loan Servicer or be transferred to a successor Loan Servicer and are not assumed by the Note purchaser unless otherwise provided by the Note purchaser.

Neither Borrower nor Lender may commence, join, or be joined to any judicial action (as either an individual litigant or the member of a class) that arises from the other party's actions pursuant to this Security Instrument or that alleges that the other party has breached any provision of, or any duty owed by reason of, this Security Instrument, until such Borrower or Lender has notified the other party (with such notice given in compliance with the requirements of Section 15) of such alleged breach and afforded the other

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party hereto a reasonable period after the giving of such notice to take corrective action. If Applicable Law provides a time period which must elapse before certain action can be taken, that time period will be deemed to be reasonable for purposes of this paragraph. The notice of acceleration and opportunity to cure given to Borrower pursuant to Section 22 and the notice of acceleration given to Borrower pursuant to Section 18 shall be deemed to satisfy the notice and opportunity to take corrective action provisions of this Section 20.

21. Hazardous Substances. As used in this Section 21: (a) "Hazardous Substances" are those substances defined as toxic or hazardous substances, pollutants, or wastes by Environmental Law and the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, and radioactive materials; (b) "Environmental Law" means federal laws and laws of the jurisdiction where the Property is located that relate to health, safety or environmental protection; (c) "Environmental Cleanup" includes any response action, remedial action, or removal action, as defined in Environmental Law; and (d) an "Environmental Condition" means a condition that can cause, contribute to, or otherwise trigger an Environmental Cleanup.

Borrower shall not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances, or threaten to release any Hazardous Substances, on or in the Property. Borrower shall not do, nor allow anyone else to do, anything affecting the Property (a) that is in violation of any Environmental Law, (b) which creates an Environmental Condition, or (c) which, due to the presence, use, or release of a Hazardous Substance, creates a condition that adversely affects the value of the Property. The preceding two sentences shall not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property (including, but not limited to, hazardous substances in consumer products).

Borrower shall promptly give Lender written notice of (a) any investigation, claim, demand, lawsuit or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge, (b) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release or threat of release of any Hazardous Substance, and (c) any condition caused by the presence, use or release of a Hazardous Substance which adversely affects the value of the Property. If Borrower learns, or is notified by any governmental or regulatory authority, or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with Environmental Law. Nothing herein shall create any obligation on Lender for an Environmental Cleanup.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section 18 unless Applicable Law provides otherwise). The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the power of sale and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the power of sale, Lender or Trustee shall give to Borrower, the owner of the Property, and all other persons, notice of sale as required by Applicable Law. Trustee shall give public notice of sale by advertising, in accordance with Applicable Law, once a week for two successive weeks in a newspaper having general circulation in the county or city in which any part of the Property is located, and by such additional or any different form of advertisement the Trustee deems advisable. Trustee may sell the Property on the eighth day after the first advertisement or any day thereafter, but not later than 30 days following the last advertisement. Trustee, without demand on Borrower, shall sell the Property at public auction to the highest bidder at the time and place and under the terms designated in the notice of sale in one or more parcels and in any order Trustee determines. Trustee may postpone sale of all or any parcel of the Property by advertising in accordance with Applicable Law. Lender or its designee may purchase the Property at any sale.

Trustee shall deliver to the purchaser Trustee's deed conveying the Property with special warranty of title. The recitals in the Trustee's deed shall be prima facie evidence of the truth of the statements made therein. Trustee shall apply the proceeds of the sale in the following order: (a) to discharge the expenses of executing the trust, including a reasonable commission to Trustee; (b) to discharge all taxes, levies, and assessment, with costs and interest if these costs have priority over the lien of this Security Instrument, including the due pro rata thereof for the current year;

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(c) to discharge in the order of their priority, if any, the remaining debts and obligations secured by this Security Instrument, and any liens of record inferior to this Security Instrument under which sale is made, with lawful interest; and, (d) the residue of the proceeds shall be paid to Borrower or Borrower's assigns. Trustee shall not be required to take possession of the Property prior to the sale thereof or to deliver possession of the Property to the purchaser at the sale.

23. Release. Upon payment of all sums secured by this Security Instrument, Lender shall request Trustee to release this Security Instrument and shall surrender all notes evidencing debt secured by this Security Instrument to Trustee. Trustee shall release this Security Instrument. Borrower shall pay any recordation costs. Lender may charge Borrower a fee for releasing this Security Instrument, but only if the fee is paid to a third party for services rendered and the charging of the fee is permitted under Applicable Law.

24. Substitute Trustee. Lender, at its option, may from time to time remove Trustee and appoint a successor trustee to any Trustee appointed hereunder. Without conveyance of the Property, the successor trustee shall succeed to all the title, power and duties conferred upon Trustee herein and by Applicable Law.

NOTICE: THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY CONVEYED.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider executed by Borrower and recorded with it.

Jonathan Chad Little 5-29-2020 (Seal)
JONATHAN CHAD LITTLE DATE

STATE OF Virginia
COUNTY ss: Smyth

The foregoing instrument was acknowledged before me this May 29, 2020 (date) by JONATHAN CHAD LITTLE (name of person acknowledged).



LOUIS S. HASH
NOTARY PUBLIC
COMMONWEALTH OF VIRGINIA
COMMISSION NO. 4066426

Louis S. Hash
Notary Public
4066426

My commission expires: 12-31-2022

Lender: The First Bank and Trust Company
NMLS ID: 486426
Loan Originator: Vickie Lynn Dotson
NMLS ID: 788608

Initials: JCL

BK 1052 PG 22
Of The
Jonathan C. Little Property
SCHEDULE "A"

Parcel Number One: Tax Map Number: 41-A-54

That certain tract or parcel of land lying and being in Saltville District, Smyth County, Virginia, and described as follows:

Designated as Tract No. 2 containing 6.00 acres as shown on plat entitled, "PLAT SHOWING A DIVISION OF THE PROPERTY OF POLLY PROFFITT ARNOLD ... " by James R. Jones, CLS, dated April 16, 1994, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 290, Page 16, and reference is hereby made to said plat for a more particular description of the property herein conveyed.

TOGETHER with a right of way for ingress and egress to Route 746 for the benefit of Tracts 1 and 3 as shown on said plat and as contained in deed dated August 4, 1994 and recorded in Deed Book 457, Page 150.

AND BEING a portion of that same property conveyed to Jonathan C. Little, by Deed from Jonathan Chad Little and Elizabeth Ann Slate Little, dated December 30, 2016, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 1003, Page 84.

Parcel Number Two: Tax Map Number: 41-A-55I

Those certain tracts or parcels of land lying and being on Virginia Secondary Highway No. 746 to the Old Rich Valley Quarry, in Saltville District, Smyth County, Virginia, and described as follows:

TRACT NO. 1:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 422.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.66 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 45 00 E 780.06, more or less, feet to the point of BEGINNING. . .

JCL

LESS AND EXCEPT 0.50 acres conveyed to William A. DeBord, Jr. by deed dated February 08, 2001 and recorded in Deed Book 561, Page 116.

LESS AND EXCEPT 1.537 **BK 1052 PG 23**veyed to Gwendolyn K. May and Anthony J. May by deed dated and recorded ~~MARCH 10, 2017~~ in Deed Book 1005, Page 344.

TRACT NO. 2:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, CLS, dated February 7, 2001, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 309, Page 13 and reference is here made to said plat for a more particular description of the premises.

AND BEING a portion of that same property conveyed to Jonathan C. Little, by Deed from Jonathan Chad Little and Elizabeth Ann Slate Little, dated December 30, 2016, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 1003, Page 84.

Reference is further made to that Deed to vacate lot lines and consolidate tax map numbers to Jonathan C. Little, dated February 23, 2017 and of record in the aforesaid Clerk's Office in Deed Book 1005, Page 340.

This conveyance is made subject to the reservations, restrictions, conditions, easements and right of ways of record in this chain of title.

THIS IS A REFINANCE OF A DEED OF TRUST RECORDED IN THE CLERK'S OFFICE OF THE CIRCUIT COURT OF SMYTH COUNTY, VIRGINIA IN DEED BOOK 1003, PAGE 89 IN THE ORIGINAL PRINCIPAL AMOUNT OF \$246,000.00.

INSTRUMENT 200001257
RECORDED IN THE CLERK'S OFFICE OF
SMYTH CIRCUIT COURT ON
JUNE 3, 2020 AT 12:03 PM
JOHN H. GRAHAM, CLERK
RECORDED BY: ALB

JCL

LOAN #: 2238022802

VIRGINIA LAND RECORD COVER SHEET

Commonwealth of Virginia VA. CODE§§ 17.1-223, -227.1, -249

FORM A – COVER SHEET CONTENT

Instrument Date: September 8, 2023

Instrument Type: Deed of Trust

Number of Parcels: 1 Number of Pages:

[] City [] County

CIRCUIT COURT

Tax Exempt? VIRGINIA/FEDERAL CODE SECTION

[] Grantor:

[] Grantee:

Business/Name

Grantor: Jonathan Chad Little

Grantor:

Grantee: The First Bank and Trust Company

Grantee:

Grantee Address

Name: The First Bank and Trust Company

Address: 191 Bristol East Rd, Ste 201

City: Bristol State: VA Zip Code: 24202

Consideration: \$33,500.00 Existing Debt: Actual Value/Assumed: \$365,566.00

PRIOR INSTRUMENT UNDER§ 58.1-803(D):

Original Principal: Fair Market Value Increase:

Original Book No.: Original Page No.: Original Instrument No.:

Prior Recording At: [] City [] County Percentage In This Jurisdiction:

Book Number: Page Number: Instrument Number:

Parcel Identification Number/Tax Map Number: 41-A-54

Short Property Description: See Exhibit A

Current Property Address: 108 Arnold Hill Lane

City: Saltville State: VA Zip Code: 24370

Instrument Prepared By: Recording Paid By:

Recording Returned To: The First Bank and Trust Company

Address: 237 Pinnacle Pkwy

City: Bristol State: TN Zip Code: 37620

(Area Above Reserved For Deed Stamp Only)

LOAN #: 2238022802

VIRGINIA LAND RECORD COVER SHEET

Commonwealth of Virginia VA. CODE §§ 17.1-223, -227.1, -249

FORM B – ADDITIONAL GRANTORS/GRANTEES

Instrument Date: September 8, 2023

Instrument Type: Deed of Trust

Number of Parcels: 1 Number of Pages:

[] City [] County
CIRCUIT COURT

Grantor Business/Name

- Grantor:
- Grantor:
- Grantor:
- Grantor:
- Grantor:
- Grantor:
- Grantor:
- Grantor:

(Area Above Reserved For Deed Stamp Only)

Grantee Business/Name

- Grantee:
- Grantee:
- Grantee:
- Grantee:
- Grantee:
- Grantee:
- Grantee:
- Grantee:

LOAN #: 2238022802
VIRGINIA LAND RECORD COVER SHEET
Commonwealth of Virginia VA. CODE §§ 17.1-223, -227.1, -249
FORM C – ADDITIONAL PARCELS

Instrument Date: September 8, 2023

Instrument Type: Deed of Trust

Number of Parcels: 1 Number of Pages:

[] City [] County
CIRCUIT COURT

Parcels Identification or Tax Map

Prior Recording At:

[] City [] County

Percentage In This Jurisdiction:

Book Number: Page Number:

Instrument Number:

Parcel Identification Number (PIN)/Tax Map Number:

Short Property Description:

Current Property Address:

City: State: Zip Code:

Prior Recording At:

[] City [] County Percentage In This Jurisdiction:

Book Number: Page Number: Instrument Number:

Parcel Identification Number/Tax Map Number:

Short Property Description:

Current Property Address:

City: State: Zip Code:

(Area Above Reserved For Deed Stamp Only)

When recorded, return to:
The First Bank and Trust Company
Attn: Mortgage Division
237 Pinnacle Pkwy
Bristol, TN 37620
866-849-2323

This document was prepared by:
The First Bank and Trust Company
237 Pinnacle Pkwy
Bristol, TN 37620
423-793-8136

APN #: 41-A-54

AMOUNT OF CONSIDERATION: \$33,500.00

DEED OF TRUST

Escrow No.: LITTLE - 2ND - 2023
LOAN #: 2238022802

NOTICE: THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF
BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY
CONVEYED.

THIS DEED OF TRUST is made this 8th day of September, 2023, among the Grantor,
JONATHAN CHAD LITTLE, AN UNMARRIED MAN,

(herein "Borrower"),
the Trustee(s) Raleigh E. HAYTER and Sophia Chafin VANCE. Trustee (whether one or more
persons) is a Virginia resident and/or a United States-or Virginia-chartered corporation whose
principal office is located in Virginia. Trustee's address is 667 W. Main St, P.O. Box 1008,
Abingdon, VA 24212 and 667 W. Main St., P.O. Box 1008, Abingdon, VA 24212,

and the Beneficiary, The First Bank and Trust Company, a Banking Corporation,

existing under the laws of Virginia
237 Pinnacle Pkwy, Bristol, TN 37620

organized and
whose address is

(herein "Lender").

LOAN #: 2238022802

BORROWER, in consideration of the indebtedness herein recited and the trust herein created, irrevocably grants and conveys to Trustee, in trust, with power of sale, the following described property located in the County of Smyth
[Type of Recording Jurisdiction] [Name of Recording Jurisdiction]:

See Exhibit A
APN #: 41-A-54

which has the address of 108 Arnold Hill Lane, Saltville,
Virginia 24370 (herein "Property Address");
[Street, City],
[ZIP Code]

TOGETHER with all the improvements now or hereafter erected on the property, and all easements, rights, appurtenances and rents (subject however to the rights and authorities given herein to Lender to collect and apply such rents), all of which shall be deemed to be and remain a part of the property covered by this Deed of Trust; and all of the foregoing, together with said property (or the leasehold estate if this Deed of Trust is on a leasehold) are hereinafter referred to as the "Property";

TO SECURE to Lender the repayment of the indebtedness evidenced by Borrower's note dated September 8, 2023, and extensions and renewals thereof (herein "Note"), in the principal sum of U.S. \$33,500.00, with interest thereon, providing for monthly installments of principal and interest, with the balance of the indebtedness, if not sooner paid, due and payable on October 1, 2038 the payment of all other sums, with interest thereon, advanced in accordance herewith to protect the security of this Deed of Trust; and the performance of the covenants and agreements of Borrower herein contained. The interest rate stated in the Note is 8.990 %. If this Security Instrument is an adjustable rate mortgage loan, this initial rate is subject to change in accordance with the attached Adjustable Rate Rider.

Borrower covenants that Borrower is lawfully seised of the estate hereby conveyed and has the right to grant and convey the Property, and that the Property is unencumbered, except for encumbrances of record. Borrower covenants that Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to encumbrances of record.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. **Payment of Principal and Interest.** Borrower shall promptly pay when due the principal and interest indebtedness evidenced by the Note and late charges as provided in the Note.

2. **Funds for Taxes and Insurance.** Subject to applicable law or a written waiver by Lender, Borrower shall pay to Lender on the day monthly payments of principal and interest are payable under the Note, until the Note is paid in full, a sum (herein "Funds") equal to one-twelfth of the yearly taxes and assessments (including condominium and planned unit development assessments, if any) which may attain priority over this Deed of Trust, and ground rents on the Property, if any, plus one-twelfth of yearly premium installments for hazard insurance, plus one-twelfth of yearly premium installments for mortgage insurance, if any, all as reasonably estimated initially and from time to time by Lender on the basis of assessments and bills and reasonable estimates thereof. Borrower shall not be obligated to make such payments of Funds to Lender to the extent that Borrower makes such payments to the holder of a prior mortgage or deed of trust if such holder is an institutional lender.

If Borrower pays Funds to Lender, the Funds shall be held in an institution the deposits or accounts of which are insured or guaranteed by a federal or state agency (including Lender if Lender is such an institution). Lender shall apply the Funds to pay said taxes, assessments, insurance premiums and ground rents. Lender may not charge for so holding and applying the Funds, analyzing said account or verifying and compiling said assessments and bills, unless Lender pays Borrower interest on the Funds and applicable law permits Lender to make such a charge. Borrower and Lender may agree in writing at the time of execution of this Deed of Trust that interest on the Funds shall be paid to Borrower, and unless such agreement is made or applicable law requires such interest to be paid, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds showing credits and debits to the Funds and the purpose

LOAN #: 2238022802

for which each debit to the Funds was made. The Funds are pledged as additional security for the sums secured by this Deed of Trust.

If the amount of the Funds held by Lender, together with the future monthly installments of Funds payable prior to the due dates of taxes, assessments, insurance premiums and ground rents, shall exceed the amount required to pay said taxes, assessments, insurance premiums and ground rents as they fall due, such excess shall be, at Borrower's option, either promptly repaid to Borrower or credited to Borrower on monthly installments of Funds. If the amount of the Funds held by Lender shall not be sufficient to pay taxes, assessments, insurance premiums and ground rents as they fall due, Borrower shall pay to Lender any amount necessary to make up the deficiency in one or more payments as Lender may require.

Upon payment in full of all sums secured by this Deed of Trust, Lender shall promptly refund to Borrower any Funds held by Lender. If under paragraph 17 hereof the Property is sold or the Property is otherwise acquired by Lender, Lender shall apply, no later than immediately prior to the sale of the Property or its acquisition by Lender, any Funds held by Lender at the time of application as a credit against the sums secured by this Deed of Trust.

3. Application of Payments. Unless applicable law provides otherwise, all payments received by Lender under the Note and paragraphs 1 and 2 hereof shall be applied by Lender first in payment of amounts payable to Lender by Borrower under paragraph 2 hereof, then to interest payable on the Note, and then to the principal of the Note.

4. Prior Mortgages and Deeds of Trust; Charges; Liens. Borrower shall perform all of Borrower's obligations under any mortgage, deed of trust or other security agreement with a lien which has priority over this Deed of Trust, including Borrower's covenants to make payments when due. Borrower shall pay or cause to be paid all taxes, assessments and other charges, fines and impositions attributable to the Property which may attain a priority over this Deed of Trust, and leasehold payments or ground rents, if any.

5. Hazard Insurance. Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and such other hazards as Lender may require and in such amounts and for such periods as Lender may require.

The insurance carrier providing the insurance shall be chosen by Borrower subject to approval by Lender; provided, that such approval shall not be unreasonably withheld. All insurance policies and renewals thereof shall be in a form acceptable to Lender and shall include a standard mortgage clause in favor of and in a form acceptable to Lender. Lender shall have the right to hold the policies and renewals thereof, subject to the terms of any mortgage, deed of trust or other security agreement with a lien which has priority over this Deed of Trust.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower.

If the Property is abandoned by Borrower, or if Borrower fails to respond to Lender within 30 days from the date notice is mailed by Lender to Borrower that the insurance carrier offers to settle a claim for insurance benefits, Lender is authorized to collect and apply the insurance proceeds at Lender's option either to restoration or repair of the Property or to the sums secured by this Deed of Trust.

6. Preservation and Maintenance of Property; Leaseholds; Condominiums; Planned Unit Developments. Borrower shall keep the Property in good repair and shall not commit waste or permit impairment or deterioration of the Property. If this Deed of Trust is on a leasehold, Borrower shall comply with all the provisions of the lease. Borrower shall not surrender the leasehold estate and interests herein conveyed or terminate or cancel the ground lease. Borrower shall not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing. If this Deed of Trust is on a unit in a condominium or a planned unit development, Borrower shall perform all of Borrower's obligations under the declaration or covenants creating or governing the condominium or planned unit development, the by-laws and regulations of the condominium or planned unit development, and constituent documents.

7. Protection of Lender's Security. If Borrower fails to perform the covenants and agreements contained in this Deed of Trust, or if any action or proceeding is commenced which materially affects Lender's interest in the Property, then Lender, at Lender's option, upon notice to Borrower, may make such appearances, disburse such sums, including reasonable attorneys' fees, and take such action as is necessary to protect Lender's interest. If Lender required mortgage insurance as a condition of making the loan secured by this Deed of Trust, Borrower shall pay the premiums required to maintain such insurance in effect until such time as the requirement for such insurance terminates in accordance with Borrower's and Lender's written agreement or applicable law.

Any amounts disbursed by Lender pursuant to this paragraph 7, with interest thereon, at the Note rate, shall become additional indebtedness of Borrower secured by this Deed of Trust. Unless Borrower and Lender agree to other terms of payment, such amounts shall be payable upon notice from Lender to Borrower requesting payment thereof. Nothing contained in this paragraph 7 shall require Lender to incur any expense or take any action hereunder.

8. Inspection. Lender may make or cause to be made reasonable entries upon and inspections of the Property, provided that Lender shall give Borrower notice prior to any such inspection specifying reasonable cause therefor related to Lender's interest in the Property.

LOAN #: 2238022802

9. Condemnation. The proceeds of any award or claim for damages, direct or consequential, in connection with any condemnation or other taking of the Property, or part thereof, or for conveyance in lieu of condemnation, are hereby assigned and shall be paid to Lender, subject to the terms of any mortgage, deed of trust or other security agreement with a lien which has priority over this Deed of Trust.

10. Borrower Not Released; Forbearance by Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Deed of Trust granted by Lender to any successor in interest of Borrower shall not operate to release, in any manner, the liability of the original Borrower and Borrower's successors in interest. Lender shall not be required to commence proceedings against such successor or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Deed of Trust by reason of any demand made by the original Borrower and Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy hereunder, or otherwise afforded by applicable law, shall not be a waiver of or preclude the exercise of any such right or remedy.

11. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements herein contained shall bind, and the rights hereunder shall inure to, the respective successors and assigns of Lender and Borrower, subject to the provisions of paragraph 16 hereof. All covenants and agreements of Borrower shall be joint and several. Any Borrower who co-signs this Deed of Trust, but does not execute the Note, (a) is co-signing this Deed of Trust only to grant and convey that Borrower's interest in the Property to Trustee under the terms of this Deed of Trust, (b) is not personally liable on the Note or under this Deed of Trust, and (c) agrees that Lender and any other Borrower hereunder may agree to extend, modify, forbear, or make any other accommodations with regard to the terms of this Deed of Trust or the Note without that Borrower's consent and without releasing that Borrower or modifying this Deed of Trust as to that Borrower's interest in the Property.

12. Notice. Except for any notice required under applicable law to be given in another manner, (a) any notice to Borrower provided for in this Deed of Trust shall be given by delivering it or by mailing such notice by certified mail addressed to Borrower at the Property Address or at such other address as Borrower may designate by notice to Lender as provided herein, and (b) any notice to Lender shall be given by certified mail to Lender's address stated herein or to such other address as Lender may designate by notice to Borrower as provided herein. Any notice provided for in this Deed of Trust shall be deemed to have been given to Borrower or Lender when given in the manner designated herein.

13. Governing Law; Severability. The state and local laws applicable to this Deed of Trust shall be the laws of the jurisdiction in which the Property is located. The foregoing sentence shall not limit the applicability of federal law to this Deed of Trust. In the event that any provision or clause of this Deed of Trust or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Deed of Trust or the Note which can be given effect without the conflicting provision, and to this end the provisions of this Deed of Trust and the Note are declared to be severable. As used herein, "costs," "expenses" and "attorneys' fees" include all sums to the extent not prohibited by applicable law or limited herein.

14. Borrower's Copy. Borrower shall be furnished a conformed copy of the Note and of this Deed of Trust at the time of execution or after recordation hereof.

15. Rehabilitation Loan Agreement. Borrower shall fulfill all of Borrower's obligations under any home rehabilitation, improvement, repair, or other loan agreement which Borrower enters into with Lender. Lender, at Lender's option, may require Borrower to execute and deliver to Lender, in a form acceptable to Lender, an assignment of any rights, claims or defenses which Borrower may have against parties who supply labor, materials or services in connection with improvements made to the Property.

16. Transfer of the Property or a Beneficial Interest in Borrower. If all or any part of the Property or any interest in it is sold or transferred (or if a beneficial interest in Borrower is sold or transferred and Borrower is not a natural person) without Lender's prior written consent, Lender may, at its option, require immediate payment in full of all sums secured by this Deed of Trust. However, this option shall not be exercised by Lender if exercise is prohibited by federal law as of the date of this Deed of Trust.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is delivered or mailed within which Borrower must pay all sums secured by this Deed of Trust. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Deed of Trust without further notice or demand on Borrower.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

17. Acceleration; Remedies. Except as provided in paragraph 16 hereof, upon Borrower's breach of any covenant or agreement of Borrower in this Deed of Trust, including the covenants to pay when due any sums secured by this Deed of Trust, Lender prior to acceleration shall give notice to Borrower as provided in paragraph 12 hereof specifying: (1) the breach; (2) the action required to cure such breach; (3) a date, not less than 10 days from the date the notice is mailed to Borrower, by which such breach must be cured; and (4) that failure to cure such breach on or

LOAN #: 2238022802

before the date specified in the notice may result in acceleration of the sums secured by this Deed of Trust and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the nonexistence of a default or any other defense of Borrower to acceleration and sale. If the breach is not cured on or before the date specified in the notice, Lender, at Lender's option, may declare all of the sums secured by this Deed of Trust to be immediately due and payable without further demand and may invoke the power of sale and any other remedies permitted by applicable law. Lender shall be entitled to collect all reasonable costs and expenses incurred in pursuing the remedies provided in this paragraph 17, including, but not limited to, reasonable attorneys' fees.

If Lender invokes the power of sale, Lender or Trustee shall give to Borrower (and the owner of the Property, if a different person) notice of sale in the manner prescribed by applicable law. Trustee shall give public notice of sale by advertising, in accordance with applicable law, once a week for two successive weeks in a newspaper having general circulation in the county or city in which the Property or some portion thereof is located, and by such additional or different form of advertisement as the Trustee may deem advisable, if any. Trustee may sell the Property on the eighth day after the first advertisement or any day thereafter, but not later than 30 days following the last advertisement. Trustee, without demand on Borrower, shall sell the Property at public auction to the highest bidder at the time and place and under the terms designated in the notice of sale in one or more parcels and in such order as Trustee may determine. Trustee may postpone sale of all or any parcel of the Property by advertising in accordance with applicable law. Lender or Lender's designee may purchase the Property at any sale.

Trustee shall deliver to the purchaser Trustee's deed conveying the Property so sold with special warranty of title. The recitals in Trustee's deed shall be prima facie evidence of the truth of the statements made therein. Trustee shall apply the proceeds of the sale in the following order: (a) to all reasonable costs and expenses of the sale, including, but not limited to, Trustee's fees of 0.00 % of the gross sale price, reasonable attorneys' fees and costs of title evidence; (b) to the discharge of all taxes, levies and assessments on the Property, if any, as provided by applicable law; (c) to all sums secured by this Deed of Trust; and (d) the excess, if any, to the person or persons legally entitled thereto. Trustee shall not be required to take possession of the Property prior to the sale thereof or to deliver possession of the Property to the purchaser at such sale.

18. Borrower's Right to Reinstate. Notwithstanding Lender's acceleration of the sums secured by this Deed of Trust due to Borrower's breach, Borrower shall have the right to have any proceedings begun by Lender to enforce this Deed of Trust discontinued at any time prior to the earlier to occur of (i) the fifth day before sale of the Property pursuant to the power of sale contained in this Deed of Trust or (ii) entry of a judgment enforcing this Deed of Trust if: (a) Borrower pays Lender all sums which would be then due under this Deed of Trust and the Note had no acceleration occurred; (b) Borrower cures all breaches of any other covenants or agreements of Borrower contained in this Deed of Trust; (c) Borrower pays all reasonable expenses incurred by Lender and Trustee in enforcing the covenants and agreements of Borrower contained in this Deed of Trust, and in enforcing Lender's and Trustee's remedies as provided in paragraph 17 hereof, including, but not limited to, reasonable attorneys' fees; and (d) Borrower takes such action as Lender may reasonably require to assure that the lien of this Deed of Trust, Lender's interest in the Property and Borrower's obligation to pay the sums secured by this Deed of Trust shall continue unimpaired. Upon such payment and cure by Borrower, this Deed of Trust and the obligations secured hereby shall remain in full force and effect as if no acceleration had occurred.

19. Assignment of Rents; Appointment of Receiver; Lender in Possession. As additional security hereunder, Borrower hereby assigns to Lender the rents of the Property, provided that Borrower shall, prior to acceleration under paragraph 17 hereof or abandonment of the Property, have the right to collect and retain such rents as they become due and payable.

Upon acceleration under paragraph 17 hereof or abandonment of the Property, Lender, in person, by agent or by judicially appointed receiver shall be entitled to enter upon, take possession of and manage the Property and to collect the rents of the Property including those past due. All rents collected by Lender or the receiver shall be applied first to payment of the costs of management of the Property and collection of rents, including, but not limited to, receiver's fees, premiums on receiver's bonds and reasonable attorneys' fees, and then to the sums secured by this Deed of Trust. Lender and the receiver shall be liable to account only for those rents actually received.

20. Release. Upon payment of all sums secured by this Deed of Trust, Lender shall request Trustee to release this Deed of Trust and shall surrender all notes evidencing indebtedness secured by this Deed of Trust. Trustee shall release this Deed of Trust to Trustee without charge to Borrower. Borrower shall pay all costs of recordation, if any.

21. Substitute Trustee. Lender may from time to time in Lender's discretion remove Trustee and appoint a successor trustee to any Trustee appointed hereunder. Without conveyance of the Property, the successor trustee shall succeed to all the title, power and duties conferred upon the Trustee herein and by applicable law.

22. Identification of Note. The Note is identified by a certificate on the Note executed by any Notary Public who certifies an acknowledgment hereto.

LOAN #: 2238022802

23. **Riders.** All Riders to this document are executed by Borrower. The following Riders are to be executed by the Borrower [check box as applicable]:

☐ Adjustable Rate Rider	☐ Condominium Rider	☐ Second Home Rider
☐ Balloon Rider	☐ Planned Unit Development Rider	☐ 1-4 Family Rider
☐ Biweekly Payment Rider		
☐ Other(s) [specify]		

REQUEST FOR NOTICE OF DEFAULT
AND FORECLOSURE UNDER SUPERIOR
MORTGAGES OR DEEDS OF TRUST

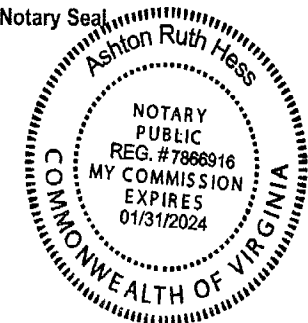
Borrower and Lender request the holder of any mortgage, deed of trust or other encumbrance with a lien which has priority over this Deed of Trust to give Notice to Lender, at Lender's address set forth on page one of this Deed of Trust, of any default under the superior encumbrance and of any sale or other foreclosure action.

IN WITNESS WHEREOF, Borrower has executed and sealed this Deed of Trust.

Jonathan Chad Little 9-8-2023 (Seal)
JONATHAN CHAD LITTLE DATE

Commonwealth of VIRGINIA
City/County of SMYTH

The foregoing instrument was acknowledged before me this
9/8/2023 (date) by JONATHAN CHAD LITTLE.



Ashton Ruth Hess
Notary Public's signature

Notary registration number: 7866916

My commission expires: 01/31/2024

Lender: The First Bank and Trust Company
NMLS ID: 486426
Loan Originator: Vickie Lynn Dotson
NMLS ID: 788608

SCHEDULE "A"

Parcel Number One: Tax Map Number: 41-A-54

That certain tract or parcel of land lying and being in Saltville District, Smyth County, Virginia, and described as follows:

Designated as Tract No. 2 containing 6.00 acres as shown on plat entitled, "PLAT SHOWING A DIVISION OF THE PROPERTY OF POLLY PROFFITT ARNOLD ..." by James R. Jones, CLS, dated April 16, 1994, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 290, Page 16, and reference is hereby made to said plat for a more particular description of the property herein conveyed.

TOGETHER with a right of way for ingress and egress to Route 746 for the benefit of Tracts 1 and 3 as shown on said plat and as contained in deed dated August 4, 1994 and recorded in Deed Book 457, Page 150.

AND BEING a portion of that same property conveyed to Jonathan C. Little, by Deed from Jonathan Chad Little and Elizabeth Ann Slate Little, dated December 30, 2016, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 1003, Page 84.

Parcel Number Two: Tax Map Number: 41-A-55I

Those certain tracts or parcels of land lying and being on Virginia Secondary Highway No. 746 to the Old Rich Valley Quarry, in Saltville District, Smyth County, Virginia, and described as follows:

TRACT NO. 1:

BEGINNING at an iron pin in the former line of Mathieson Alkali Works, and being the northwestern boundary of the tract hereby conveyed; thence leaving such iron pin S 50 42.75 feet to an iron pin corner to Williams; thence with Williams line, S 10 21 W 403.28 feet to an iron pin in the center of a 10 foot alley; thence S 79 39 E 283.00 feet with the center line of the alley to an iron pin corner to Arnold; thence with the line of Arnold S 08 32 W 61.65 feet to an iron pin; thence S 11 09 E 676.63 feet to an iron pin corner to Arnold and Hicks; thence for a division between Hicks, Taylor, and the property hereby conveyed, N 57 15 W 1496.88 feet to iron pin in property formerly belonging to Mathieson Alkali Works; thence with the line of former Mathieson, N 46 00 E 780.06, more or less feet to the point of BEGINNING.

LESS AND EXCEPT 0.50 acres conveyed to William A. DeBord, Jr. by deed dated February 08, 2001 and recorded in Deed Book 561, Page 116.

LESS AND EXCEPT 1.537 acres, more or less conveyed to Gwendolyn K. May and Anthony J. May by deed dated and recorded March 10, 2017 in Deed Book 1005, Page 344.

TRACT NO. 2:

Being that 0.50 acre tract or parcel of land shown on a map or plat by Gale W. Maiden, CLS, dated February 7, 2001, of record in the Clerk's Office of Smyth County, Virginia, on Plat Slide 309, Page 13 and reference is here made to said plat for a more particular description of the premises.

AND BEING a portion of that same property conveyed to Jonathan C. Little, by Deed from Jonathan Chad Little and Elizabeth Ann Slate Little, dated December 30, 2016, filed for record in the Clerk's Office of the Circuit Court of Smyth County, Virginia in Deed Book 1003, Page 84.

Reference is further made to that Deed to vacate lot lines and consolidate tax map numbers to Jonathan C. Little, dated February 23, 2017 and of record in the aforesaid Clerk's Office in Deed Book 1005, Page 340.

INSTRUMENT 230002004
RECORDED IN THE CLERK'S OFFICE OF
SMYTH CIRCUIT COURT ON
SEPTEMBER 13, 2023 AT 09:18 AM
JOHN H. GRAHAM, CLERK
RECORDED BY: AAM

ABSTRACT OF JUDGMENT

Commonwealth of Virginia VA. CODE § 8.01-449

Case No. GV24001330-00

SMYTH GENERAL DISTRICT - CIVIL DIVISION

109 W MAIN ST RM1022, MARION, VA 24354

DISTRICT COURT NAME AND ADDRESS

WESTLAKE SERVICES, LLC

FULL NAME OF PLAINTIFF (LAST, FIRST, MIDDLE)

DBA: WESTLAKE FINANCIAL SERVICES

ADDRESS

9211 CORP BLVD, STE 130
ROCKVILLE, MD 20850

v.

LEWIS, MICHAEL A

FULL NAME OF DEFENDANT (LAST, FIRST, MIDDLE)

ADDRESS

144 DRY BRANCH RD
CHILHOWIE, VA 24319

CITY

STATE

ZIP

DATE OF BIRTH

SSN (LAST FOUR DIGITS ONLY)

FULL NAME OF PLAINTIFF(S)

ADDRESS

CITY

STATE

DATE OF BIRTH

SSN (LAST FOUR DIGITS ONLY)

FULL NAME OF DEFENDANT(S)

ADDRESS

CITY

STATE

ZIP

DATE OF BIRTH

SSN (LAST FOUR DIGITS ONLY)

CITY

STATE

ZIP

DATE OF BIRTH

SSN (LAST FOUR DIGITS ONLY)

This is to certify that a judgment was rendered in this court in favor of:

☒ PLAINTIFF(S) against DEFENDANT(S)

☐ DEFENDANT(S) against PLAINTIFF(S)

☐ v.

I CERTIFY THAT THE DOCUMENT TO WHICH THIS AUTHENTICATION IS AFFIXED IS A TRUE COPY OF A RECORD IN THE SMYTH GENERAL DISTRICT COURT, THAT I HAVE CUSTODY OF THE RECORD, AND THAT I AM CUSTODIAN OF THAT RECORD.

DATE OF JUDGMENT 12/18/2024

\$ 5,701.17

AMOUNT OF JUDGMENT

DATE

CLERK

DEPUTY CLERK

\$

AMOUNT OF JUDGMENT NOT SUBJECT TO ACCRUAL OF INTEREST

HOMESTEAD EXEMPTION WAIVED ☐ YES ☒ NO ☐ CANNOT BE DEMANDED

VIRGINIA

IN THE CLERK'S OFFICE OF

SMYTH CIRCUIT COURT

MARCH 10, 2025 AT 02:07 PM

\$

ALTERNATE VALUE OF SPECIFIC PROPERTY AWARD

INTEREST RATE(S) AND BEGINNING DATE(S)

JUDGMENT/RELEASE #250000191 WAS DOCKETED

UPON CERTIFICATION OF ACKNOWLEDGEMENT

THEREBY ANNEXED, ADMITTED TO RECORD.

THE FEE IMPOSED BY SEC. 17.1-275(17)

OF THE VIRGINIA CODE, HAS BEEN PAID.

RCPT: 25000001347 BK: SMYTH PG: GD

TESTE: JOHN H. GRAHAM, CLERK

COSTS

\$ 67.00

ATTORNEY'S FEES

\$

OTHER:

I certify the above to be a true abstract of a judgment rendered in this court:

1/13/2025

DATE

RECORDED BY: EXM

[] CLERK

[] JUDGE

VIRGINIA:

RECEIVED
CIRCUIT COURT CLERK
SMYTH COUNTY VIRGINIA
2025 MAR 10 A 11:14

IN THE CIRCUIT COURT FOR SMYTH COUNTY

**Westlake Services, LLC, dba
Westlake Financial Services**

Plaintiff

v.

Case No.:

Michael A Lewis

Defendant

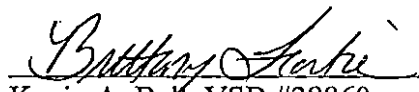
PRAECIPE

Please register the judgment and docket the lien in the above-referenced case. The abstract and a check in the amount of \$10.00 to cover the fees, are attached. Please return the file stamped copy of the praecipe with the lien recordation information (date lien record and instrument or judgment number) in the self-addressed stamped envelope.

Respectfully submitted,

Westlake Services, LLC, dba Westlake Financial
Services

By Counsel:


Kevin A. Bell, VSB #28860
Michael P Chabrow, VSB#27748
Brittany E. Fortier, VSB#80371
Tenaglia & Hunt, P.A.
9211 Corporate Blvd, Ste 130
Rockville, Maryland 20850
(240) 772-3144; Fax: (201) 226-0795
Counsel for Plaintiff

20-521



Commonwealth of Virginia
Department of Social Services
Division of Child Support Enforcement

ABINGDON DISTRICT OFFICE
190 PATTON STREET SUITE 300
ABINGDON, VA 24210-0000
<http://www.dss.virginia.gov/family/dcse/>
1-800-468-8894

LIEN FOR SUPPORT DEBT

08/11/2020

Division Case Number: 0004885810

SMYTH CIRCUIT COURT
109 W MAIN ST STE 144
MARION, VA 24354-2510

Pursuant to the provisions of Title 63.2, Chapter 19, of the Code of Virginia, notice is hereby given that a support debt has been assessed against the following named debtor in the amount stated, which after notice and demand for payment thereof remains unpaid. The amount of said debt, together with debt, penalties, interest, and costs that may accrue in addition thereto, is a lien with priority of a secured creditor in favor of the Department of Social Services, Commonwealth of Virginia, upon all real and personal property and rights to such property belonging to said debtor and attaching on the date of filing to all such property located within the jurisdiction of each circuit court in which clerk's office this notice is filed.

Name of Debtor: MICHAEL A LEWIS
Social Security Number: XXX-XX-9873
Residence Address: 372 STILL HOUSE HOLLOW RD
SALTVILLE, VA 24370-3164
Debt Due: \$12,677.56
Time Period for Debt Due: 05/01/2015 through 07/31/2020

Any person, corporation, association, political subdivision or department of the State with actual notice of this lien in whose possession there is property subject hereto, shall not pay over, release, sell, transfer, encumber or convey such property, except as to earnings exempted by Va. Code § 34-29, unless they are in possession of a written release or waiver of this lien or this lien has been ordered released by competent authority. Failure to comply with this provision may result in civil liability for the entire amount of the debt plus costs, interest and reasonable attorney's fees. If you have questions, please contact the Division's Customer Service Center at 1-800-468-8894.

Vicki Simmons *SES* *8/12/20*

Signature/Authorized Representative (VICKIE C SIMMONS)

Commonwealth of Virginia, Department of Social Services, Division of Child Support Enforcement

v.

MICHAEL A LEWIS
Lien for Support Debt

Filed this _____ day of _____, _____, at _____ am/pm and proper entry made in _____

Item No. _____

(Clerk or Registrar)

RECEIVED
CIRCUIT COURT CLERK
SMYTH COUNTY VIRGINIA
2020 AUG 17 PM 1:47



081289

C19846

ABSTRACT OF JUDGMENT

CASE NUMBER: GV08000535-00

SMYTH GENERAL DISTRICT COURT

PLAINTIFF(S)

V

DEFENDANT(S)

LUNV FUNDING LLC
 ASSIGNEE OF WAL-MART
 6851 JERICHO TURNPIKE, SU
 SYOSSET, NY 11791

NO SSN
 NO DOB

MICHAEL LEWIS
 115 SAPWOOD DRIVE
 MARION, VA 24354

0458
 NO DOB

RECEIVED
 CLERK'S OFFICE
 SMYTH COUNTY, VIRGINIA
 2008 NOV 17 AM 11:57

THIS IS TO CERTIFY THAT A JUDGMENT WAS RENDERED IN THIS COURT IN FAVOR OF:

PLAINTIFF(S) AGAINST DEFENDANT(S) CONTAINING THE FOLLOWING TERMS:

DATE OF JUDGMENT: 05/28/08

AMOUNT OF JUDGMENT: \$800.45

OTHER AMOUNT: \$0.00

HOMESTEAD EXEMPTION WAIVED: () YES () NO () CANNOT BE DEMANDED

ALTERNATE VALUE OF SPECIFIC PROPERTY AWARDED: N/A

INTEREST: 6 % FROM 08-19-05

COSTS: \$48.00

ATTORNEY'S FEES:

ATTORNEY: ALDRIDGE, T. CHAPPEL

VIRGINIA
 IN THE CLERK'S OFFICE OF
 SMYTH
 NOVEMBER 17, 2008 AT 01:08PM
 JUDGMENT/RELEASE #080001289 WAS DOCKETED
 UPON CERTIFICATION OF ACKNOWLEDGEMENT
 THERETO ANNEXED, ADMITTED TO RECORD.
 THE FEE IMPOSED BY SEC. 17.1-275(17)
 OF THE VIRGINIA CODE, HAS BEEN PAID.
 RCPT: 08000010409 BK: SMYTH PG: 6D
 TESTE: JIMMY L. WARREN, CLERK

BY: _____ D.C.

OTHER AWARDED:

I CERTIFY THE ABOVE TO BE A TRUE ABSTRACT OF A JUDGMENT RENDERED IN THIS COURT

DATE

() CLERK

() JUDGE

05/29/08

JR Hutton Supak